
CITY OF GALLATIN COUNCIL MEETING

May 17, 2022

6:00 pm

Dr. J. Deotha Malone
Council Chambers

- Call to Order – Mayor Brown
- Invocation
- Pledge of Allegiance – Councilwoman George
- Roll Call: Alexander – Fann – Vice Mayor Fennell– George – Hayes – Love – Overton
- Approval of Minutes: April 19, 2022 City Council Meeting; May 3, 2022 City Council Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Second Reading Ordinance No. O2205-19** Ordinance appropriating \$2,125.00 from revenue received from insurance for building repair to annex **(Councilman Alexander)**
2. **Second Reading Ordinance No. O2205-21** Ordinance appropriating \$31,073.67 from revenue received from insurance for damaged vehicles **(Vice Mayor Fennell)**
3. **Second Reading Amended Ordinance No. O2205-22** Ordinance appropriating funds for 2022 year end budget adjustments **(Councilman Hayes)**
4. **Second Reading Ordinance No. O2205-23** Ordinance appropriating additional funds in the amount of \$750,000.00 for natural gas line extensions under existing contract – “Contract 2019 Annual Natural Gas Line Construction” **(Councilwoman Love)**
5. **Second Reading Ordinance No. O2205-24** Ordinance appropriating funds in the amount of \$700,000.00 from natural gas reserves for engineering services for the West Loop Gas Main Extension project **(Councilman Overton)**
6. **First Reading Ordinance No. O2205-20** Ordinance amending Gallatin Municipal Code Chapter 3, Alcoholic Beverages **(Councilwoman George)**
7. **First Reading Ordinance No. O2205-25** An ordinance of the City of Gallatin, Sumner County, Tennessee, amending the Gallatin Zoning Ordinance, Article 2, Section 02.02, Definitions, Article 3.0, Use Classification, Section 03.07, Commercial Activities, Class and Types, Article 7.00, Provisions for Mixed-Use Districts, Section 7.02 Intent and Description for the MRO-Multiple Residential and Office District, Section 07.03 Intent and Description of the MU-Mixed Use District, Article 8.00, Provisions for Commercial Districts, Section 08.01, Intent and Purpose of CC-Core Commercial District, Section 08.04, Intent and Purpose of the PGC-Planned General Commercial District, and Section 8.05, Intent and Purpose of the PNC-Planned Neighborhood Commercial District, to permit animal care limited as a permitted use and remove the use of animal care, with the following conditions; authorizing the revisions to be made to the Zoning Ordinance; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Hayes)**

8. **First Reading Ordinance No. O2205-26** Ordinance to provide revenue for the City of Gallatin Tennessee for municipal purposes for the 2022 tax year and the 2023 fiscal year **(Councilman Alexander)**
9. **First Reading Ordinance No. O2205-27** Ordinance of the City of Gallatin, Tennessee, adopting the annual budget for the fiscal year beginning July 1, 2022 through June 30, 2023. **(Councilwoman George)**
10. **Resolution No. R2205-44** Resolution approving mural at 118 West Main Street **(Councilman Fann)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

The City of Gallatin City Council Meeting

Tuesday, April 19, 2022

The Gallatin City Council met in regular session on Tuesday, April 19, 2022 in the Dr. J. Deotha Malone Council Chambers Gallatin City Hall. Mayor Paige Brown called the meeting to order at 6:00 P.M. Councilman John D. Alexander led the opening prayer and Vice Mayor Shawn Fennell led the pledge of allegiance.

City Recorder Connie Kittrell called the roll and the following were present:

Present:

Mayor Paige Brown
Vice Mayor Shawn Fennell
Councilman John D. Alexander
Councilman Steve Fann
Councilwoman Eileen George
Councilman Craig Hayes
Councilwoman Lynda Love
Councilman Jimmy Overton

Absent:

Department Heads and Others Present:

Jeff Beaman, Fire Chief
Leticia Alexander, Staff Attorney
Nick Tuttle, City Engineer
Bill McCord, City Planner
Connie Kittrell, City Recorder
James Fenton, EDA Director
Rachel Nichols, Finance Director

Richard Depriest, Public Works Director
Connie Flood, H.R. Director
Lori Smiley, I.T. Director
David Brown, Parks & Rec. Director
Don Bandy, Police Chief
David Kellogg, Public Utilities Director

Approval of Minutes

Mayor presented the April 5, 2022 City Council minutes for approval.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Correction: Councilwoman Love requested a correction to the spelling of Rose Mont on page eight.

Addition: Councilwoman George requested an addition to the minutes. She asked that the minutes reflect that there were several disruptions from the audience members during the meeting.

Mayor called for the vote on the minutes with corrections and additions. Motion carried with 7 ayes and 0.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

With no one wishing to speak public recognition on agenda-related items was closed.

Mayor's Comments

Mayor announced the following events:

- Sumner County Youth Job + Opportunity Fair will be April 21, 2022.
- Welch College presents "Tuck Everlasting" on April 21-23, 2022.
- "Market in the Park" is April 22-23, 2022.
- Wil-Ro, Inc. 2nd Annual Truck Show is April 23, 2022.
- Antique & Classic Cars Cruise-In on April 28, 2022 at Gallatin Civic Center.
- Gallatin Daycare "Spaghetti Supper and Auction" will be April 29, 2022 at Gallatin Civic Center Gym
- City Engineer Nick Tuttle's Birthday is April 30, 2022.
- "Pedal for Paws" is April 30, 2022 at Gallatin Civic Center.
- "SquareFest on the Square" is April 30, 2022.
- Mayor presented a Proclamation to CASA recognizing their 30th anniversary.

Agenda

1. Ordinance #O2203-12 – Second Reading

Councilman Alexander presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 14.67 (+/-) acres from the R10 – Medium Density Residential District to R-8 PRD – Medium Density Residential Planned Residential Development District with a Preliminary Master Development Plan for the Holland property, located west of Center Street and north of Demoss Street; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Alexander made motion to approve; Councilman Overton seconded.

Council discussed the exterior construction materials.

Mayor called for the vote. Motion carried with 7 ayes and 0 nays.

2. Ordinance #O2203-15 – Second Reading

Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Lowe's and a Preliminary Master Development Plan for Double Star Hotel, a four (4) story, 71,876 square foot hotel, on a 3.76 (+/-) acre lot (Tax Map 136, Parcel 038.00), located south of Nashville Pike and east of Browns Lane; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Hayes made motion to approve; Councilman Alexander seconded.

Councilwoman George stated she had a problem with parking and traffic.

Motion carried with 6 ayes and Councilwoman George voted nay.

3. Ordinance #O2203-16 – Second Reading

Councilwoman Love presented this ordinance appropriating \$32,150.00 from various budget lines for Gallatin EDA vehicle purchase.

Councilwoman Love made motion to approve; Councilwoman George seconded. Motion carried with 7 ayes and 0 nays.

4. Ordinance #O2204-18 – Second Reading

Councilman Overton presented this ordinance appropriating \$687,741.00 from Donations from Businesses to Gateway Drive Extension Construction.

Mayor stated this is money from the company to pay the city for the road that is serving the company.

Councilman Overton made motion to approve; Councilman Hayes seconded. Motion carried with 7 ayes and 0 nays.

5. Resolution #R2203-30

Councilman Hayes presented this resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of a .70 (+/-) mile long segment of Big Station Camp Boulevard right-of-way, extending from Vietnam Veterans Boulevard (SR 386) to south of Lakeland Drive, comprising approximately 13.6 acres, and providing for an effective date. (ANNX-2022-0021)

Councilman Hayes made motion to approve; Councilman Fann seconded. Motion carried with 7 ayes and 0 nays.

6. Resolution #R2203-31

Councilman Hayes presented this resolution of the City of Gallatin, Sumner County, Tennessee, annexing of a .70 (+/-) mile long segment of Big Station Camp Boulevard right-of-way, extending from south of Vietnam Veterans Boulevard (SR 386) to south of the intersection of Lakeland Drive and Big Station Camp Boulevard, comprising approximately 13.6 acres; authorizing the annexed right-of-way to be indicated on the Official Zoning Atlas; authorizing the

assignment of annexed area to a council district; repealing conflicting ordinances and resolutions; providing for severability, and providing for an effective date.

Councilman Hayes made motion to approve; Vice Mayor Fennell seconded.
Motion carried with 7 ayes and 0 nays.

7. Resolution #R2204-37

Councilman Fann presented this resolution temporarily adjusting certain rates of pay.

Councilman Fann made motion to approve; Councilman Alexander seconded.
Motion carried with 7 ayes and 0 nays.

8. Resolution #R2204-38

Councilwoman George presented this resolution re-appointing Richie Harville as board member of the Gallatin Economic Development Agency Board.

Councilwoman George made motion to approve; Councilman Overton seconded. Motion carried with 7 ayes and 0 nays.

9. Resolution #R2204-43

Vice Mayor Fennell presented this resolution amending Gallatin Personnel Rules and Regulations relating to Sick Leave Pool, Rule 16, Section 16-3(u).

Vice Mayor Fennell made motion to approve; Councilman Overton seconded.
Motion carried with 7 ayes and 0 nays.

Other Business

Mayor opened other business.

- Mayor asked council how they wished to proceed with the Fourth of July celebration.

Council discussed.

- Mayor presented a road closure for “SquareFest” on April 30, 2022 and October 1, 2022.

Councilman Overton made motion to approve; Councilwoman Love seconded. Motion carried with 7 ayes and 0 nays.

With no one else wishing to speak other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor opened public recognition on non-agenda-related items.

- Joe Debord of 1007 Hart Street spoke about multiple concerns and announced Special Activity Day Grand Fondo Bike Ride on September 17, 2022 and the Truck and Tractor Pull on November 17, 2022.
- Pascal Jouvence of 1335 Long Hollow Pike asked for a minute of silence for the passing of County Commissioner Moe Taylor. Mr. Jouvence requested council/committee meetings be posted on the front page of the city website.
- Bishop A. Michael Clark of 923 South Westland Avenue thanked council for their support of “The Seven Last Words” and asked everyone to be more kind.

With no one else wishing to speak public recognition on non-agenda-related items was closed.

Adjourn

Councilman Overton made motion to adjourn; Councilman Alexander seconded. Motion carried with 7 ayes and 0 nays.

Mayor adjourned the meeting at 6:33 P.M.

Mayor Paige Brown

City Recorder Connie Kittrell

The City of Gallatin City Council Meeting

Tuesday, May 3, 2022

The Gallatin City Council met in regular session on Tuesday, May 3, 2022 in the Dr. J. Deotha Malone Council Chambers Gallatin City Hall. Mayor Paige Brown called the meeting to order at 6:00 P.M. Councilman John D. Alexander led the opening prayer and Councilwoman Eileen George led the pledge of allegiance.

City Recorder Connie Kittrell called the roll call and the following were present:

Present:

Mayor Paige Brown
Vice Mayor Shawn Fennell
Councilman John D. Alexander
Councilman Steve Fann
Councilwoman Eileen George
Councilman Craig Hayes
Councilwoman Lynda Love

Absent:

Councilman Jimmy Overton

Department Heads and Others Present:

Brandon Howell, Fire Inspector
Susan High-McAuley, City Attorney
Ihab Habib, Project Engineer
Bill McCord, City Planner
Connie Kittrell, City Recorder
James Fenton, EDA Director
Rachel Nichols, Finance Director
Jeff Hentschel, Communications Dir.

Jeff Beaman, Fire Chief
Connie Flood, H.R. Director
Lori Smiley, I.T. Director
David Brown, Parks & Rec. Director
Don Bandy, Police Chief
David Kellogg, Public Utilities Director
Richard Depriest, Supt. Public Works

Approval of Minutes

There were no minutes presented for approval.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

- Kam Patel of 421 Woodlands Drive spoke about liquor stores. Mr. Patel suggested lowering the population requirements to 4,000 or open it up for everyone.
- Michael Zinser of 914 Fairington Way stated he was a previous liquor store owner. Mr. Zinser requested council make no changes to the current liquor ordinance.

With no one else wishing to speak public recognition on agenda-related items was closed.

Mayor's Comments

- Mayor thanked everyone who participated in the Lock 4 Clean-Up, Pedal for Paws, Miracle Park Opening Day and Squarefest.

Mayor announced the following events:

- "Hero Day" on May 5, 2022.
- National Day of Prayer on May 5, 2022.
- Antique & Classic Cars Cruise-In on May 5, 2022 at the Civic Center.
- Food Giveaway at Gallatin Shalom Zone on May 6-7, 2022.
- "Market Day" at Farmer's Market on May 7, 2022.
- Gallatin Shalom Zone Community Day on May 7, 2022.
- "Run for Rose Mont Kentucky Derby Party" on May 7, 2022.
- Mayor Brown read and presented a Proclamation to the Gallatin Building Department recognizing "Building Safety Month".
- Mayor read and a Proclamation for TN Voices for Children recognizing "Children Mental Health Awareness Day".

Agenda

1. Ordinance #O2205-19 – First Reading

Councilman Alexander presented this ordinance appropriating \$2,125.00 from revenue received from insurance for building repair to annex.

Councilman Alexander made motion to approve; Councilman Hayes seconded. Motion carried with 6 ayes and 0 nays.

2. Ordinance #O2205-20 – First Reading

Councilman Fann presented this ordinance amending Gallatin Municipal Code Chapter 3, Alcoholic Beverages.

Councilman Fann made motion to defer to next council meeting; Vice Mayor Fennell seconded. Motion carried with 6 ayes and 0 nays.

3. Ordinance #O2205-21 – First Reading

Vice Mayor Fennell presented this ordinance appropriating \$31,073.67 from revenue received from insurance for damaged vehicles.

Vice Mayor Fennell made motion to approve; Councilwoman George seconded. Motion carried with 6 ayes and 0 nays.

4. Ordinance #O2205-22 – First Reading

Councilman Hayes presented this ordinance appropriating funds for 2022 year end budget adjustments.

Councilman Hayes made motion to approve; Councilman Alexander seconded.

Finance Director Rachel Nichols explained and requested an amendment to the ordinance.

Councilman Hayes made motion to amend; Councilwoman Love seconded. Motion carried with 6 ayes and 0 nays.

Mayor called for the vote on the original motion. Motion carried with 6 ayes and 0 nays.

5. Ordinance #O2205-23 – First Reading

Councilwoman Love presented this ordinance appropriating additional funds in the amount of \$750,000.00 for natural gas line extensions under existing contract – “Contract 2019 Annual Natural Gas Line Construction.”

Councilwoman Love made motion to approve; Councilman Alexander seconded. Motion carried with 6 ayes and 0 nays.

6. Ordinance #O2205-24 – First Reading

Councilwoman George presented this ordinance appropriating funds in the amount of \$700,000.00 from natural gas reserves for engineering services for the West Loop Gas Main Extension project.

Councilwoman George made motion to approve; Councilwoman Love seconded. Motion carried with 6 ayes and 0 nays.

Other Business

Mayor opened other business.

With no one wishing to speak other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor opened public recognition on non-agenda-related items.

- Parks and Recreation Director David Brown thanked everyone who came to Opening Day at Miracle Park and the Volunteer Buddies.
- David Green of 221 Griffin Lane spoke about neighborhood parking issues in his subdivision (Liberty Creek). Mr. Green asked council for guidance or suggestions on working with the HOA concerning parking.

- Josh Murphy of 268 Griffin Lane spoke about parking issues with the HOA in Liberty Creek Subdivision.
- Michelle Jouvence of 1335 Long Hollow Pike voiced her concerns with the approval of the Liberty Creek Development.
- Joe Debord of 1007 Hart Street discussed the proposed parking garage to be built in front of Christian Towers.

With no one else wishing to speak public recognition on non-agenda-related items was closed.

Adjourn

Vice Mayor Fennell made motion to adjourn; Councilman Hayes seconded. Motion carried with 6 ayes and 0 nays.

Mayor adjourned the meeting at 6:44 P.M. without objection.

Mayor Paige Brown

City Recorder Connie Kittrell

ORDINANCE APPROPRIATING \$2,125.00 FROM REVENUE RECEIVED
FROM INSURANCE FOR BUILDING REPAIR TO ANNEX

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$2,125.00 is hereby appropriated from revenue received from the insurance payment on a damaged building, account #110-36350, to the following account: Repair & Maintenance - Building, account #110-42110-266, \$2,125.00 for building repair,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: May 3, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 26, 2022

DEPARTMENT: POLICE

AGENDA #

**SUBJECT: ORDINANCE TO APPROPRIATE REVENUE FROM INSURANCE
PAYMENT ON DAMAGED BUILDING**

SUMMARY: Ordinance to appropriate revenue from insurance payment on damage to Annex (411 S. Water) due to a vehicle accident for building repair.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$31,073.67 FROM REVENUE RECEIVED
FROM INSURANCE FOR DAMAGED VEHICLES

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of
\$31,073.67 is hereby appropriated from revenue received from the insurance payment on damaged
police vehicles, account #11-3650, to the following account:

Repair & Maintenance – Motor Vehicles, account #110-42110-261, \$31,073.67 for vehicle repairs,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this
Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: May 3, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 26, 2022

DEPARTMENT: POLICE

AGENDA #

**SUBJECT: ORDINANCE TO APPROPRIATE REVENUE FROM INSURANCE
PAYMENTS ON DAMAGED VEHICLES**

SUMMARY: Ordinance to appropriate revenue from insurance payments on damaged Vehicles for vehicle repairs.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AMENDED ORDINANCE NO. O22Ø5-22

ORDINANCE APPROPRIATING FUNDS FOR
2022 YEAR END BUDGET ADJUSTMENTS

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$30,000 is hereby appropriated to the Special Revenue fund Donations, 122-36730, and to 12242150-730, Shop With A Cop/Firefighter Program;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$22,500 is hereby appropriated from the IDB/HEHFB unassigned fund balance to 12447220-290 Industrial Development Board PILOT;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$300,000 is hereby appropriated from the Gas unassigned fund balance to 41552123-541, Gas Depreciation Expense;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$124,000 is hereby appropriated to account 110-33420, State Training Supplement Revenue, with \$71,200 allocated to 11042220-129, Fire Training and with \$52,800 allocated to 11042110-129, Police Training;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$104,801.48 is hereby appropriated from the General Fund unassigned fund balance to the following accounts:

11041800-111	Building Maintenance Salaries	7,200
11041800-141	Building Maintenance FICA	550
11042220-111	Fire Salaries	51,255
11042220-141	Fire FICA	3,921

11042220-143	Fire Retirement	4,613
11043160-111	Street Lights & Signals Salaries	10,000
11043160-141	Street Lights & Signals FICA	765
11043160-143	Street Lights & Signals Retirement	900
11043170-111	Vehicle Maint Salaries	41,615
11043170-141	Vehicle Maint FICA	3,184
11043170-143	Vehicle Maint Retirement	3,745
11044450-111	Golf Salaries	1,000
11044450-141	Golf FICA	77
11044450-143	Golf Retirement	90
11044720-111	Parks Salaries	36,010
11044720-141	Parks FICA	2,755
11044720-143	Parks Retirement	3,241
11041640-290-116	Information Technology Microsoft	21,000
110-34330	Vehicle Maint revenues	(40,000)
11043170-261	Vehicle Maint and Repairs Vehicles	40,000
11044720-147	Parks Unemployment	14,000
110-33190-244-1	Police Behavioral Health grant	(388,183.32)
11042110-256-244-1	Police Behavioral Health grant consultant	117,185.46
11042110-259-244-1	Police Behav. Health gr professional service	140,389
11042110-285-244-1	Police Behavioral Health grant training	2,285.07
11042110-312-244-1	Police Behavioral Health grant equipment	17,588.73
110-33190-258	Police Staffing grant	(26,788.21)

11042110-111-258	Police Staffing grant salaries	3,071.45
11042110-123-258	Police Staffing grant OT	6,941.61
11042110-256-258	Police Staffing grant consultant	10,309.63
11042110-280-258	Police Staffing grant travel	5,565
11042110-312-258	Police Staffing grant equipment	900.52
110-33190-265	Police COSSAP grant	(841,057.96)
11042110-256-265	Police COSSAP grant consultant	172,694.65
11042110-259-265	Police COSSAP grant professional services	211,542
11042110-280-265	Police COSSAP grant travel	10,206
11042110-285-265	Police COSSAP grant training	3,500
11042110-310-265	Police COSSAP grant office supplies	10,834.73
11042110-312-265	Police COSSAP grant equipment	7,793.16
11042110-320-265	Police COSSAP grant operating supplies	240,000;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$1,402,163 is hereby appropriated from the Water/Sewer Fund unassigned fund balance to the following accounts:

41352117-111	Water Administration Salaries	10,000
41352117-141	Water Administration FICA	765
41352117-143	Water Administration Retirement	900
41352211-111	Sewer Collection Salaries	15,000
41352211-141	Sewer Collection FICA	1,148
41352211-143	Sewer Collection Retirement	1,350
41352114-934-256	Water T&D Woolhawk	(930,000)

41352114-934	Water T&D Utility lines	(1,060,000)
41352211-934-256	Sewer Lines Woolhawk	1,990,000
41352212-934-245	Sewer System Rehab 2019	1,143,000
41352213-290	Sewer Treatment & Disposal Contractual	230,000;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE,
that this Ordinance shall take effect from and after its final passage, the public welfare
requiring such.

PASSED FIRST READING: May 3, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL, CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY, CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 26, 2022

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Ordinance appropriating funds for year-end account clean-up

SUMMARY:

Ordinance appropriating funds to various accounts for year-end clean-up due to: Retiree Sick Leave Payouts, 4-step salary adjustments for certain positions, multi-year grant activity that was not included in the carryover ordinance last fall, additional revenues collected and spent, price increases, unemployment claims, etc.

RECOMMENDATION:

Approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**ORDINANCE APPROPRIATING ADDITIONAL FUNDS IN THE AMOUNT OF
\$750,000.00 FOR NATURAL GAS LINE EXTENSIONS UNDER EXISTING
CONTRACT – “CONTRACT 2019 ANNUAL NATURAL GAS LINE CONSTRUCTION”**

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$750,000.00 is hereby appropriated from the natural gas reserve to be added to the existing “2019 Annual Natural Gas Line Construction” contract with James N. Bush Construction Company, Inc. for the installation of natural gas mains and services in various areas of the City.

BE IT FURTHER ORDAINED, BY THE CITY OF GALLATIN, TENNESSEE, that this ordinance shall take effect from and after its final passage, the public welfare requiring it.

PASSED FIRST READING: May 3, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[April 26, 2022]

DEPARTMENT: Utilities

AGENDA # 2

SUBJECT:

Ordinance No. O2205-23 authorizing and appropriating additional funds in the total amount of \$750,000.00 for existing 2019 Annual Gas Line Construction.

SUMMARY:

Ordinance authorizing and appropriating additional funds in the total amount of \$750,000.00 from the natural gas reserve, for existing contract 2019 Annual Gas Line Construction Contract for installation of natural gas mains and services in various areas of the City.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**ORDINANCE APPROPRIATING FUNDS IN THE AMOUNT OF \$700,000.00 FROM
NATURAL GAS RESERVES FOR ENGINEERING SERVICES FOR THE WEST LOOP
GAS MAIN EXTENSION PROJECT**

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$700,000.00 is hereby appropriated from the natural gas reserves for engineering, design, survey, permitting, and easement acquisition services for the West Loop Natural Gas Main Extension project.

BE IT FURTHER ORDAINED, BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor and Superintendent of Public Utilities are hereby authorized to execute all necessary contracts and agreements for said professional services.

BE IT FURTHER ORDAINED, BY THE CITY OF GALLATIN, TENNESSEE, that this ordinance shall take effect from and after its final passage, the public welfare requiring it.

PASSED FIRST READING: May 3, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[April 26, 2022]

DEPARTMENT: Utilities

AGENDA # 3

SUBJECT:

Ordinance No. O2205-24 Authorizing and appropriating funds in the amount of \$700,000.00 for the West Loop Gas Main Extension Project

SUMMARY:

Ordinance authorizing and appropriating funds in the total amount of \$700,000.00 from Natural Gas Reserves for engineering design, survey, permitting and easement acquisition services for the West Loop Natural Gas Main Extension Project.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02205-20

**ORDINANCE AMENDING GALLATIN MUNICIPAL CODE
CHAPTER 3, ALCOHOLIC BEVERAGES**

WHEREAS, it is deemed in the public interest to amend the Gallatin Municipal Code from time to time; and

WHEREAS, The Mayor and City Council have recommended that the City of Gallatin Municipal Code be amended regarding the regulation and restrictions related to alcoholic beverages in the City of Gallatin.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin Municipal Code, Chapter 3 is hereby amended by deleting it in its entirety and replacing it with the following:

CHAPTER 3 ALCOHOLIC BEVERAGES

ARTICLE I. ALCOHOLIC BEVERAGES AND BEER GENERALLY

Sec 3-1. Legalized; compliance with state law and city code.

- (A) It shall be lawful to manufacture, sell, store, transport, distribute, purchase, possess, and/or consume alcoholic beverages and beer within the corporate limits of the City, subject to the prohibitions, restrictions, and other provisions of Title 57 of the Tennessee Code, the rules and regulations promulgated thereunder, this chapter, and the City's Zoning Ordinance.
- (B) The general provisions of the state law relating to alcoholic beverages and beer as contained in Title 57 of the Tennessee Code are hereby adopted and by reference are fully incorporated in this chapter.
- (C) The various rules and regulations promulgated from time to time by the Tennessee Alcoholic Beverage Commission and Department of Revenue regarding the sale of alcoholic beverages as herein defined are hereby adopted and by reference are fully incorporated in this chapter.
- (D) This chapter and the provisions herein shall be interpreted and enforced in conjunction with the laws of the State of Tennessee regarding alcoholic beverages and beer. In the event of conflicts or inconsistencies, the laws of the state shall control.

Section 3-2. Terms defined.

- (A) For purposes of this chapter, the following terms shall have the meanings ascribed to them in this section:
 - (1) *"Alcoholic Beverage."* Any beverage or liquid product satisfying the definition for alcoholic beverage in T.C.A. § 57-3-101, which definition excludes patent medicine and beer.
 - (2) *"Beer."* Any beer, ale, or other malt beverage, or any other beverages having an alcoholic content of not more than eight percent (8%) by weight, except wine as defined in T.C.A. § 57-3-101, provided, however, that no more than forty-nine percent (49%) of the overall

alcoholic content of such beverage may be derived from the addition of flavors and other non-beverage ingredients containing alcohol.

- (3) *"Commission."* The Tennessee Alcoholic Beverages Commission.
- (4) *"High alcohol content beer."* An alcoholic beverage which is beer, ale or other malt beverage having an alcoholic content of more than eight percent (8%) by weight and not more than twenty percent (20%) by weight, except wine as defined in T.C.A. § 57-3-101, provided, that no more than forty-nine percent (49%) of the overall alcoholic content of such beverage may be derived from the addition of flavors and other non-beverage ingredients containing alcohol.
- (5) *"Individual."* A natural person.
- (6) *"Person."* Any natural person, association, partnership, limited liability company, corporation, or legal entity.
- (7) *"Place of Worship."* Any structure that is utilized on a regular basis by a religious institution as the site of congregational services, rites, or activities communally undertaken for the purpose of worship.
- (8) *"Premises."* The property: (a) owned, leased, or otherwise controlled by a person that is used or intended to be used by said person for the retail sale of alcoholic beverages or beer (whether for consumption on or off such property); and (b) connected with such business so as to form a component or integral part of it, including, but not limited to, outdoor patios, decks, or similar areas where alcohol is served.
- (9) *"Retail food store."* An establishment that is open to the public that derives at least twenty percent (20%) of its taxable sales from the retail sale of food and food ingredients for human consumption taxed at the rate provided in § 67-6-228(a) and has retail floor space of at least 1,200 square feet.
- (10) *"Retail liquor store."* Any business that under Title 57, Chapter 3, Part 2 of the Tennessee Code is required to have a license to engage in the retail sale of alcoholic beverages for consumption at a location other than such business's premises.
- (11) *"Retail sale or sale at retail."* A sale to a consumer or to any person for any purpose other than resale.
- (12) *"School."* Any public or private primary school or secondary school. The term does not include any industrial, technical, or trade school, any building or facility of Volunteer State Community College, or any other post-secondary educational institution.
- (13) *"Wholesale or sale at wholesale."* A sale to any person for purposes of resale by that person.
- (14) *"Wine."* The product of the normal alcoholic fermentation of the juice of fresh, sound, ripe grapes, with the usual cellar treatment and necessary additions to correct defects due to climatic, saccharine and seasonal conditions, including champagne, sparkling and fortified wine of an alcoholic content not to exceed eighteen percent (18%) by volume.

- (B) Unless specifically defined elsewhere in this chapter, the terms used in this chapter shall have the meanings ascribed to them, unless the context requires an alternative meaning, in Title 57 of the Tennessee Code, as such statutory definitions may be amended from time to time.

Sec 3-3. Referendum authorizing adoption of chapter.

This chapter is adopted pursuant to the authority granted in T.C.A. Title 57 and the referendum held on December 7, 1967.

Secs. 3-4 – 3-50. Reserved.

ARTICLE II. ALCOHOLIC BEVERAGES AND WINE

DIVISION 1. RETAIL SALE OF ALCOHOLIC BEVERAGES AND WINE FOR OFF-PREMISES CONSUMPTION

Section 3-51. Definitions.

- (A) For purposes of this Article, the following terms shall have the meanings ascribed to them in this section:
- (1) *"Applicant."* Any person filing an application for a Certificate of Compliance with the City Recorder or on whose behalf any such application is filed.
 - (2) *"Certificate of Compliance."* Either a Retail Liquor Certificate of Compliance or a Wine Certificate of Compliance.
 - (3) *"Retail Liquor Certificate of Compliance."* The certificate of compliance for a retail liquor license as defined and set forth in T.C.A. § 57-3-208.
 - (4) *"Wine Certificate of Compliance."* The certificate of compliance for retail food store wine license as defined and set forth in T.C.A. § 57-3-806.

Section 3-52. Retail Liquor Certificate of Compliance; initial application; approval.

- (A) Any person seeking a state license for a retail liquor store pursuant to T.C.A. § 57-3-204 must first apply for and obtain a Retail Liquor Certificate of Compliance from the City as required in T.C.A. § 57-3-208.
- (B) City Council shall approve the issuance of any Retail Liquor Certificate of Compliance to an applicant who has satisfied the requirements for such certificate set forth in T.C.A. § 57-3-208 and this Article, subject to Section 3-54. All approved certificates shall be signed by the Mayor and issued to the applicant by the City Recorder.
- (C) To obtain a Retail Liquor Certificate of Compliance for any premises, whether the application be for the transfer of an existing license to a new location or for issuance of a new license, an applicant or applicant group must first:
- (1) File a formal application with the City Recorder on a form provided by the City Recorder;
 - (2) Provide a criminal background history check, in the form required by the City Recorder;

- (i) In the case of a sole proprietorship, partnership, limited liability company, or close corporation whose stock is not publicly traded, on any and all individuals with at least a five percent (5%) ownership interest in the retail liquor store's business; or
 - (ii) In the case of a publicly traded corporation, on the executive officer responsible for the store's operations and each individual, if any, who owns at least fifty percent (50%) of the corporation's stock;
- (3) Pay an application fee of two hundred fifty dollars (\$250.00) to the City Recorder; and
- (4) Provide whatever additional and relevant information the City Recorder may reasonably require.
- (D) Upon receiving an application for a Retail Liquor Certificate of Compliance, the City Recorder shall review the application. Upon determining that the application meets the requirements of Section 3-52 (C), the City Recorder shall present the application, along with the applicant's proposed Certificate of Compliance, to Council for consideration at the earliest possible meeting.
- (E) City Council may require an applicant for a Retail Liquor Certificate of Compliance to appear before the Council to address any matter related to the applicant's application and/or business. City Council may also request and the applicant shall furnish additional information regarding the applicant's application and/or business.
- (F) An applicant, once having fulfilled the requirements of this section and all other applicable laws and regulations entitling the applicant to have the application lawfully considered by Council, may be required to resubmit or further supplement the application in the event Council votes to defer action on the application to a later date; however, if Council denies or rejects the application, the applicant must submit a new application, pay another application fee, cause a new advertisement and a new posting to be made, and otherwise comply with all terms of this section and all other applicable laws and regulations in order to have the applicant's request for a Retail Liquor Certificate of Compliance reconsidered by Council.
- (G) In accordance with T.C.A. § 57-3-208, failure by the City to grant or deny an applicant's application for a Retail Liquor Certificate of Compliance within sixty (60) days of the City Recorder's receipt of the applicant's completed written application shall be deemed a granting of the certificate. If an applicant is denied a certificate, the applicant may seek review of such denial as allowed by law.

Section 3-53. Retail Liquor Certificate of Compliance; term.

In accordance with T.C.A. § 57-3-208, a Retail Liquor Certificate of Compliance issued pursuant to Section 3-52 remains valid unless there is a change of ownership or location. If either of these events occurs, a new certificate must be obtained in compliance with the requirements of Section 3-52 prior to renewal of a state retail license.

Section 3-54. Retail liquor certificate of compliance; limited number.

- (A) Notwithstanding the requirements of Section 3-52(B), City Council shall not issue any Retail Liquor Certificate of Compliance relative to any new retail liquor stores unless it is determined, in accordance with Section 3-54 (C), that the availability of alcoholic beverages to City residents is unreasonably restricted.
- (B) Notwithstanding the limitation established in Section 3-54 (A), the City shall issue one or more new certificates for purposes of facilitating the sale of any interest in any existing retail liquor store or the relocation of a retail liquor store's place of business within the City if the person or persons applying for any such certificate(s) satisfy the requirements of Section 3-52 and T.C.A. § 57-3-208.
- (C) For the purpose of determining whether the availability of alcoholic beverages to residents of the City is unreasonably restricted, it will be presumed, absent proof to the contrary, that alcoholic beverages are generally available and that residents are being adequately served when the ratio between the number of operating retail liquor stores in the City relative to the population of the City is less than or equal to one store for each 7,000 City residents. The population of the City for purposes of determining the number of retail liquor stores will be the number provided by the most current data made available by the U.S. Census Bureau.
- (D) The Mayor shall provide to the City Recorder the latest census data provided by the U.S. Census Bureau within five (5) days of receipt of such data. The City Recorder shall report to the City Council at the first regularly called City Council meeting following receipt of such data from the Mayor the total number of licensed retail liquor stores operating within the City as of that date and the total number of additional retail liquor stores, if any, that could be approved to operate within the City under this section. If any additional retail liquor stores are permitted to be added under this Section, the City Recorder shall accept applications of interested parties who wish to apply for a Retail Liquor Certificate of Compliance for a period of _____. Applicants must verify they can meet all requirements to be issued a Retail Liquor Certificate of Compliance. At the next regularly called City Council meeting following the conclusion of the _____ time period, the City Recorder shall hold a lottery wherein all parties who have submitted applications of interest shall be placed into a drawing and one applicant shall be drawn therefrom and the name of the successful applicant shall be read out publicly. This process shall continue if more than one retail liquor store can be added until the number of additional retail liquor stores is depleted. Successful applicants must apply for a Retail Liquor Certificate of Compliance within 30 days.

Section 3-55. Location restrictions on retail liquor stores.

- (A) No Retail Liquor Certificate of Compliance shall be issued to an applicant where the business for which the applicant is seeking a certificate is located on property in any zone established by the City's Zoning Ordinance other than Commercial Core (CC) District, Commercial General (CG) District, Commercial Services (CS) District, Planned Neighborhood Commercial (PNC) District, Planned General Commercial (PGC) District, Mixed Use (MU) District, Mixed Use General (MUG) District, Mixed Use Limited (MUL) District, or any other district allowed by amendment of the City's Zoning Ordinance.
- (B) No Retail Liquor Certificate of Compliance shall be issued to an applicant where the applicant's business is located within 1,500 feet of an existing retail liquor store, such distance

to be measured by following the shortest route of pedestrian travel along the public right-of-way from the main entrance of the existing store to the main entrance of the applicant's building. For purposes of this subsection (B), the public right-of-way shall be deemed to include any private sidewalk, drive, or parking lot generally open for use by the public at large.

- (C) No initial Retail Certificate of Compliance shall be issued to an applicant where the applicant's business will cause congestion of traffic or interference with schools, places of worship, or other places of public gathering, or otherwise interfere with public health, safety, and morals. In making such determination, the Council shall take into consideration all facts, conditions and circumstances that may be relevant to the inquiry in each particular case. This subsection shall not apply to renewals of Certificates of Compliance.

Section 3-56. Wine Certificate of Compliance.

- (A) Any person seeking a retail food store wine license pursuant to T.C.A. § 57-3-803 to engage in the sale of wine in a retail food store must first apply for and obtain a Wine Certificate of Compliance from the City as required in T.C.A. § 57-3-806.
- (B) City Council shall approve the issuance of any Wine Certificate of Compliance to an applicant who has satisfied the requirements for such certificate set forth in T.C.A. § 57-3-806 and this article. All approved certificates shall be signed by the Mayor and issued to the applicant by the City Recorder.
- (C) To obtain a Wine Certificate of Compliance for any premises, whether the application be for the transfer of an existing license to a new location or for issuance of a new license, an applicant or applicant group must first:
 - (1) File a formal application with the City Recorder on a form provided by the City Recorder;
 - (2) Provide a criminal background history, in the form required by the City Recorder:
 - (i) In the case of a sole proprietorship, partnership, limited liability company (except as provided in subsection (2)(iii)), or close corporation whose stock is not publicly traded, on any and all individuals with at least a ten percent (10%) ownership interest in the retail food store's business; or
 - (ii) In the case of a publicly traded corporation, on the executive officer responsible for the store's operations and each individual, if any, who owns at least fifty percent (50%) of the corporation's stock; or
 - (iii) Notwithstanding subsection (2)(i), in the case of a limited liability company wholly owned (directly or indirectly) by one (1) or more publicly traded corporations, on the executive officer responsible for the store's operations;
 - (3) Pay an application fee of two hundred fifty dollars (\$250.00) to the City Recorder, and
 - (4) Provide whatever additional and relevant information the City Recorder may reasonably require.
- (D) Upon receiving an application for a Wine Certificate of Compliance, the City Recorder shall review the application. Upon determining that the application meets the requirements for

issuance, the City Recorder shall present the application, along with the applicant's proposed Certificate of Compliance, to Council for consideration at the earliest possible meeting.

- (E) An applicant for a Wine Certificate of Compliance shall appear in person before Council for examination as may be desired by Council. The applicant shall furnish such relevant information as may be requested by Council.
- (F) An applicant, once having fulfilled the requirements of this section and all other applicable laws and regulations entitling the applicant to have the application lawfully considered by Council, may be required to resubmit or further supplement the application in the event Council votes to defer action on the application to a later date; however, if Council denies or rejects the application, the applicant must submit a new application, pay another application fee, and otherwise comply with all terms of this section and all other applicable laws and regulations in order to have the applicant's request for a Wine Certificate of Compliance reconsidered by Council.
- (G) In accordance with T.C.A. § 57-3-806, failure by the City to grant or deny an applicant's request for a Wine Certificate of Compliance within sixty (60) days of the City Recorder's receipt of the applicant's completed written application shall be deemed a granting of the certificate. If an applicant is denied a certificate, the applicant may seek review of such denial as allowed by law.

Section 3-57. Wine Certificate of Compliance; term.

In accordance with T.C.A. § 57-3-807, a Wine Certificate of Compliance issued pursuant to Section 3-56 remains valid unless there is a change of ownership or location. If either of these events occurs, a new certificate must be obtained in compliance with the requirements of Section 3-56 prior to renewal of a state retail food store wine license.

Section 3-58. Full and accurate disclosure required.

- (A) Each application for a Certificate of Compliance required pursuant to either Section 3-52 or Section 3-56 shall identify each individual who is to be in actual charge of the business and, if a corporation, each executive officer and each individual in control of the business. For the purposes of this section, an individual who owns at least fifty percent (50%) of the stock of a corporation is considered to be in control of the business.
- (B) Misrepresentation of a material fact, or concealment of a material fact required to be shown in the application for a certificate, shall be a violation of this Article. The City may refuse to issue a certificate if, upon investigation, the City finds that the applicant for a certificate has concealed or misrepresented in writing or otherwise any material fact or circumstance concerning the operation of the business, or if the interest of any person in the operation of the business is not truly stated in the application, or in case of any fraud or false statements by the applicant pertaining to any matter relating to the operation of the business. All data, written statements, affidavits, evidence or other documents submitted in support of an application are a part of the application.
- (C) If the provisions of this section are alleged to have been violated, the City may revoke any Certificate of Compliance which has been issued, after first providing an opportunity for the applicant or licensee to refute such allegations and/or to show cause why the certificate should not be revoked. Revocation of a certificate shall require a majority vote of City Council. Upon

revocation of a certificate, the City Recorder shall send a certified copy of the revocation to the Alcoholic Beverage Commission.

Section 3-59. General restrictions on retailers and employees.

(A) The license fee for every license hereunder shall be payable by the person making application for such license and to whom it is issued, and no other person shall pay for such license. In addition to all other penalties, a violation of this section shall authorize and require the City Council to take action to revoke the license, if any, of the person so paying for the license of another and/or the license of the person for whom the license was purchased.

(B) No retailer's license shall be issued to a person who is a holder of a public office, either appointive or elective, or who is a public employee, either national, state, city or county. It shall be unlawful for any such person to have any interest in such retail business, directly or indirectly, either proprietary or by means of any loan, mortgage, or lien, or to participate in the profits of any such business.

The foregoing shall not apply to uncompensated appointees to municipal boards and commissions where the boards or commissions on which such appointees serve have no duty to vote for, overlook, or in any manner superintend the sale of alcoholic beverages.

(C) No retailer shall be a person who has been convicted of a felony involving moral turpitude within ten (10) years prior to the time he or she or the concern with which he or she is connected shall receive a license. However, this provision shall not apply to any person who has been convicted, but whose rights of citizenship have been restored or judgment of infamy has been removed by a court of competent jurisdiction. In the case of any such conviction occurring after a license has been issued and received, the said license shall immediately be revoked, if such convicted felon be an individual licensee, and if not, the partnership, corporation or association with which he or she is connected shall immediately discharge him or her.

(D) No license shall under any condition be issued to any person who within ten (10) years preceding application for such license or permit shall have been convicted of any offense under the laws of the State of Tennessee or of any other state or of the United States prohibiting or regulating the sale, possession, transportation, storing, manufacturing, or otherwise handling intoxicating liquors or who has, during said period, been engaged in business, alone or with others, in violation of any of said laws or rules and regulations promulgated pursuant thereto.

(E) No manufacturer, brewer, or wholesaler shall have any interest in the business or building containing licensed premises or any other person having a license hereunder or in the fixtures of any such person.

(F) It shall be unlawful for any person to have ownership in, or participate, either directly or indirectly, in the profits of any retail business licensee, unless his interest in said business and the nature, extent, and character thereof shall appear on the application. If the interest is acquired after the issuance of a license it shall be fully disclosed to the City Council and approved by it. Where such interest is owned by such person on or before the application for any license, the burden shall be upon such person to see that this section is fully complied with, whether he or she, himself or herself, signs or prepares the application, or whether the

same is prepared by another. If said interest is acquired after the issuance of the license, the burden of said disclosure of the acquisition of such interest shall be upon the seller and the purchaser. If any person shall violate the provisions of this subsection, he or she shall be guilty of a misdemeanor and, upon conviction thereof shall be fined as allowed by law.

- (G) No person shall be employed in the sale of alcoholic beverages except a citizen of the United States.
- (H) No retailer, or any employee thereof, engaged in the sale of alcoholic beverages shall be a person under the age of eighteen (18) years. It shall be unlawful for any retailer to employ any person under eighteen (18) years of age for the physical storage, sale, or distribution of alcoholic beverages, or to permit any such person in its place of business to engage in the storage, sale or distribution of alcoholic beverages.
- (I) No retailer shall employ in the storage, sale or distribution of alcoholic beverages, any person who, within ten (10) years prior to the date of his or her employment shall have been convicted of a felony involving moral turpitude. In case an employee should be convicted he or she shall immediately be discharged. However, these provisions shall not apply to any person who has been so convicted, but whose rights of citizenship have been restored, or judgment of infamy has been removed by a court of competent jurisdiction.
- (J) The issuance of a license does not vest a property right in the licensee, but is a privilege subject to revocation or suspension under this Chapter.
- (K) The restrictions and limitations on retailers and employees set forth in Title T.C.A. § 57-3-210 are incorporated herein as if copied verbatim and to the extent any provision of this Section shall conflict with state law by amendment of state law or otherwise, state law controls.

Section 3-60. Regulations for purchase and sale of alcoholic beverages.

- (A) It shall be unlawful for any person in this city to buy any alcoholic beverages herein defined from any person who does not hold the appropriate license under this Article authorizing the sale of said beverages to him or her.
- (B) No retailer shall purchase any alcoholic beverages from anyone other than a licensed wholesaler, nor shall any wholesaler sell any alcoholic beverages to anyone other than a licensed retailer.
- (C) No licensee shall sell intoxicating liquors at retail in connection with any other business or in the same store where any other business is carried on.
- (D) No retail store shall be located except on the ground floor and it shall have one main entrance opening on a public street and such place of business shall have no other entrance for use by the public except as hereafter provided.

When a retail store is located on the corner of two (2) public streets such retail store may maintain a door opening on each of the public streets. Any sales room adjoining the lobby of a hotel or other public building may maintain an additional door into such lobby so long as same shall be open to the public. Also, every retail store shall be provided with whatever entrances and exits may be required by existing or future municipal ordinances. When a retail liquor store is authorized to be located or operated within an established shopping center or

shopping mall, under circumstances that said liquor store would not have a main entrance or door opening onto a public street, the City Council in its discretion may nevertheless approve the issuance of a liquor license for said location, pursuant to section 3-55 of this chapter.

- (E) No holder of a license for the sale of alcoholic beverages at retail shall sell, deliver, or cause, permit or procure to be sold or delivered, any alcoholic beverage on credit.
- (F) The sale and delivery of alcoholic beverages shall be confined to the premises of the licensee and curbside service is not permitted.
- (G) To the fullest extent, consistent with the structure of the establishment, full, free and unobstructed vision shall be afforded from the street and public highway to the interior of the place of sale or dispensing of alcoholic beverages there sold or dispensed.
- (H) Advertising by a licensee, and signs, displays, posters, and designs intended to advertise any alcoholic beverages, shall be governed by the applicable rules of the Tennessee Alcoholic Beverage Commission and/or the sign provisions and restrictions of the underlying zoning district in which the licensee is located or the sign or advertising is proposed.
- (I) It shall be unlawful for any person to violate T.C.A. §§ 57-3-404, 57-3-406, 57-3-412, 57-3-413, 57-3-807, 57-3-808, or 57-3-809, which are incorporated herein as if copied verbatim in their entirety. To the extent any provision of this Section shall conflict with state law by amendment of state law or otherwise, state law controls.

Section 3-61. Inspection fees.

- (A) The City, as authorized by T.C.A. § 57-3-501, hereby imposes an inspection fee upon retail liquor licensees and retail food store wine licensees (collectively "retail licensees") located within the City.
- (B) Such inspection fee shall equal five percent (5%) of the wholesale price of alcoholic beverages (including wine) supplied by a wholesaler to any retail licensee located within the City.
- (C) Wholesalers operating within the City shall collect the inspection fee from retail licensees at the time of sale or at the time any such retailer makes payment for the delivery of the alcoholic beverages or wine.
- (D) Each wholesaler making sales to a retail licensee within the City shall furnish the City Recorder on a monthly basis with a report containing the information required for such reports by T.C.A. § 57-3-503(a). The monthly report shall be furnished to the City Recorder within twenty (20) days of the end of the month in which the sales were made. The inspection fees collected by the wholesaler from retail licensees within the City shall be paid to the City at the time the monthly report is made.
- (E) Failure by a wholesaler to collect the required inspection fee and/or to report and/or pay all such fees in accordance with subsection (D) shall result in the assessment of a penalty against the wholesaler equal to ten percent (10%) of the fee due to the City, which fee shall be payable to the City.

Section 3-62. Actions to recover unpaid fees.

Whenever any wholesaler fails to account for or pay the City Recorder any inspection fee imposed pursuant to Section 3-60, the City Recorder shall report the same to the City Attorney, and the City Attorney is hereby authorized to take appropriate action to recover such fee, including filing a civil action in Circuit or Chancery Court.

Section 3-63. Examination of books by City Recorder.

The City Recorder is authorized to examine the books, papers and records of any retailer for the purpose of determining compliance with the provisions of this Article and any provision of the Tennessee Code incorporated herein. Any refusal to permit the examination of any such books, papers, or records, or the investigation and examination of such premises, shall constitute sufficient reason for the revocation of a certificate of compliance.

Section 3-64. Retain invoices and records.

A licensee shall retain all invoices of alcoholic beverages procured from a wholesale dealer and sales invoices and other records reasonably required to establish and prove that licensee complies with the taxing and inspection fee provisions of this chapter. The aforementioned records must be maintained for a minimum of thirty-six (36) months.

Section 3-65. Article not applicable to beer.

No provision of this Article, regulating and controlling the sale of alcoholic beverages and wine, shall be considered or construed as in any way modifying, changing or restricting the rules and regulations governing the manufacture, sale, storage, transportation, or taxation of beer or other liquids regulated under Article III of this chapter.

Section 3-66. Violations; penalty.

Any violation of the provisions of this Article shall constitute a misdemeanor and shall, upon conviction, be punishable as provided in Code § 1-15. Upon conviction of any person under this Article, it shall be mandatory for the Municipal Judge to immediately certify said conviction whether on appeal or not, directly to the Tennessee Alcoholic Beverage Commission.

Sections 3-67. Manufacture of alcoholic beverages allowed.

- (A) It shall be lawful to manufacture alcoholic beverages, including liquor, wine, and high alcohol content beer, within the City, subject to the regulations, limitations, conditions, and restrictions set forth in this chapter, the City's Zoning Ordinance, and Title 57, Chapters 2 and 3 of the Tennessee Code.
- (B) Consumption of alcoholic beverages manufactured on the premises of a manufacturing facility allowed under this section is permitted in accordance with T.C.A. § 57-3-202.
- (C) Alcoholic beverages and/or beer manufactured on the premises of a facility allowed under this section may not be sold for consumption on the premises of such facility, unless such alcoholic beverages are sold pursuant to an appropriate liquor by-the-drink license issued by the Commission and/or an appropriate beer permit from the City.

Secs. 3-68 – 3-80. Reserved.

DIVISION 2. RETAIL SALE OF ALCOHOLIC BEVERAGES AND WINE FOR ON-PREMISES CONSUMPTION

Sec. 3-81. Legalized; compliance with state law and city code.

It shall be lawful, within the corporate limits of the City, to sell wine and other alcoholic beverages for consumption on the premises where such beverages are sold, subject to the prohibitions, restrictions, and other provisions of Title 57, Chapter 4 of the Tennessee Code, the rules and regulations promulgated thereunder, this Article, and the City's Zoning Ordinance.

Sec. 3-82. Regulations and prohibited practices.

It shall be unlawful for any person, firm or corporation holding a license to sell alcoholic beverages for consumption on the premises to violate the rules, regulations, and prohibited practices set forth in T.C.A. §§ 57-4-201 and 57-4-203, which code sections are incorporated herein as if copied verbatim in their entirety.

Sec. 3-83. Privilege taxes.

- (A) There is hereby levied on the privilege of selling at retail in the City alcoholic beverages for consumption on the premises the tax provided for in Tennessee Code Annotated, § 57-4-301, as it now exists or may from time to time be amended at the rates and in the manner prescribed by said state law, and the said tax shall hereafter be collected annually by the City.
- (B) At the time of adoption of this Section the rates levied are as set forth below, but the rates shall be adjusted as set forth in subsection (A):
 - (1) Private club \$300.00
 - (2) Hotel and motel \$1,000.00
 - (3) Convention center \$500.00
 - (4) Premier type tourist resort \$1,500.00
 - (5) Restaurant, according to seating capacity, on licensed premises:
 - (a) 40 through 74 seats \$650.00
 - (b) 75 through 125 seats \$750.00
 - (c) 126 through 175 seats \$925.00
 - (d) 176 through 225 seats \$975.00
 - (e) 226 through 275 seats \$1,100.00
 - (f) 276 seats and over \$1,200.00
 - (6) Wine-only restaurant, according to seating capacity, on licensed premises:
 - (a) 40 through 125 seats \$120.00
 - (b) 126 through 175 seats \$150.00
 - (c) 176 through 225 seats \$160.00
 - (d) 226 through 275 seats \$180.00
 - (e) 276 seats and over \$200.00

- (7) Historic performing arts center \$300.00
- (8) Urban park center \$500.00
- (9) Historic mansion house site/Historic inn \$300.00
- (9) Historic interpretive center \$300.00
- (10) Community theater \$300.00
- (11) Museum \$300.00
- (12) Theater \$300.00
- (13) Commercial passenger boat company \$750.00
- (14) Zoological institution \$300
- (15) Establishment in a terminal building of a commercial air carrier airport \$1,000.00
- (16) Commercial airline travel club \$500.00
- (17) Public aquarium \$300.00
- (18) Caterers (including any restaurant or hotel that engages in the business of selling alcoholic beverages for consumption at locations other than the licensed premises) \$500.00.
- (19) Limited service restaurant, based on the gross sales of prepared food:
 - (a) At least thirty percent (30%) but not more than fifty percent (50%) of gross sales are from the sale of prepared food \$2,000.00
 - (b) At least twenty percent (20%) but not more than thirty percent (30%) of gross sales are from the sale of prepared food \$3,000.00
 - (c) At least fifteen percent (15%) but not more than twenty percent (20%) of gross sales are from the sale of prepared food \$4,000.00
 - (d) Zero percent (0%) but not more than fifteen percent (15%) of gross sales are from the sale of prepared food \$5,000.00
- (B) A restaurant or hotel that also operates a catering business shall be required to pay both the caterer privilege tax and the restaurant or hotel privilege tax.
- (C) The taxes imposed pursuant to Section 3-83 (A) shall be first payable on the date the Commission issues a liquor-by-the-drink license to the person engaging in the privilege and shall be prorated from said date of issuance until the next following October 1, at which time, a full year's taxes shall then be due and immediately payable.
- (D) If the initial privilege tax or any subsequent annual privilege tax is not paid within thirty (30) days of when the tax is due, such tax shall be deemed delinquent, and interest on the amount due shall accrue at the rate of one and a half percent (1.5%) per month until paid. Such interest shall accrue on the first day of each month following the date of delinquency.
- (E) All taxes and interest imposed by this section may be collected as other taxes payable to the City.

- (F) Should the licensee also hold a beer permit issued by the City, a failure to pay taxes under this section shall constitute grounds for suspension or revocation of the beer permit. Repeated violations of this section will constitute grounds for permanent revocation of a beer permit.

Section 3-83. Violations; penalty.

Any violation of the provisions of this article shall, upon conviction, be punishable as provided in Code § 1-15. Upon conviction of any person under this article, it shall be mandatory for the Municipal Judge to immediately certify said conviction, whether on appeal or not, directly to the Tennessee Alcoholic Beverage Commission.

Secs. 3-84 – 3-100. Reserved.

ARTICLE III. BEER

DIVISION 1. GENERALLY

Section 3-101. Manufacture, storage, distribution, and sale of beer regulated.

It shall be lawful to manufacture, store, transport, distribute, sell, possess, and receive beer within the City, subject to all of the regulations, limitations, and restrictions provided in this Article and subject to the rules and regulations promulgated pursuant to this Article.

Section 3-102. Definitions.

(A) The following words shall have the meanings ascribed to them in this section:

- (1) *"Applicant."* Any person filing or on whose behalf an application for a beer permit is filed with the City Recorder.
- (2) *"Board."* The City of Gallatin Beer Board created by Section 3-121 of this Code.
- (3) *"Bona fide charitable or nonprofit organization."* (a) Any corporation that has been recognized as exempt from federal taxes under § 501 (c) of the Internal Revenue Code, codified in 26 U.S.C. § 501 (c); or (b) any other organization that exclusively serves religious, educational or charitable purposes and that has been recognized by the Tennessee Secretary of State as being exempt from registering with the Secretary of State as a charitable organization in accordance with the requirements of the Charitable Solicitations Act, T.C.A. § 48-101-501 et seq.
- (4) *"Caterer."* A person engaged in offering food and beverage service for a fee at various locations that: (a) operates a permanent catering hall or restaurant; (b) has a complete and adequate commercial kitchen; and (c) is licensed as a caterer by the Tennessee Department of Health or whose catering hall is licensed as a restaurant by the Tennessee Department of Health.
- (5) *"Certified clerk."* A clerk who has successfully satisfied the training requirements set forth in Title 57, Chapter 5, Part 6 of the Tennessee Code and who has received certification from a responsible vendor training program.
- (6) *"Clerk."* Any person working in a capacity to sell beer directly to consumers for off premises consumption.

- (7) *"Crime involving moral turpitude."* Any of the following felony or misdemeanor offenses as established by Tennessee law, by any similar federal statute, or by any similar statute of another United States jurisdiction: first or second degree murder; voluntary manslaughter; aggravated assault; domestic assault or abuse; kidnapping; false imprisonment; all sexual offenses; robbery; arson; burglary; money laundering; child abuse or neglect; bribery; the manufacture, delivery, sale, or possession with intent to manufacture, deliver, or sell any Schedule I or II controlled substances as designated in Title 39, Chapter 17, Part 4 of the Tennessee Code; theft of property or services classified as a felony or included within a jurisdiction's two highest classifications of misdemeanors, i.e., Class A and B misdemeanors under Tennessee law or the equivalent in the jurisdiction in which the crime was committed; or any attempt, conspiracy, or solicitation to commit any of the foregoing criminal offenses.
- (8) *"Employee."* An individual employed by a permit holder who renders services in the distribution, sale, manufacture, or consumption of beer at the location for which the permit applied for or issued under this Article is applicable.
- (9) *"Live entertainment."* A performance by one or more individuals who perform before an audience on a permitted premise as a singer, musician, dancer, comedian, or model for consideration, monetary or otherwise.
- (10) *"Owner."* The owner of a business to which a permit is issued, whether an individual, association, partnership, limited liability company, corporation, or other entity.
- (11) *"Permit Holder."* Any person to whom any permit has been issued pursuant to this Article.
- (12) *"Permitted premises."* The property owned, leased, controlled, or otherwise used by a permit holder and so connected with the business activity in which the permit holder is engaged so as to form a component or integral part of it, including, but not limited to a building in which such business is located and the parking areas surrounding it.
- (13) *"Responsible vendor."* A vendor that has received certification from the Tennessee Alcoholic Beverages Commission pursuant to Title 57, Chapter 5, Part 6 of the Tennessee Code.
- (14) *"Responsible vendor training program."* A training program related to the responsible sale of beer for off-premises consumption that has met all the statutory and regulatory requirements set forth in Title 57, Chapter 5, Part 6 of the Tennessee Code and in the Tennessee Alcoholic Beverages Commission's rules and regulations;
- (15) *"Storage."* The storing or possessing of beer for the purpose of resale by the permit holder.
- (16) *"Vendor."* Any person who been issued a permit to sell beer for off-premises consumption.
- (B) Other terms used in this Article shall have the meanings ascribed to them, where applicable, in Section 3-102 of this chapter and in Title 57, Chapter 5 of the Tennessee Code, as such statutory definitions may be amended from time to time.

Section 3-103. Interpretation.

This Article and the provisions herein shall be interpreted and enforced in conjunction with the laws of the state regarding beer. In the event of conflicts or inconsistencies, the laws of the state shall control.

Section 3-104. Violations.

Except as otherwise provided in this Article, any violation of this Article or any provision of Title 57, Chapter 5 of the Tennessee Code shall constitute a civil offense and shall, upon conviction, be punishable by a penalty under the Municipal Code, in addition to or in lieu of any other penalty or remedy established in this Article, including the suspension or revocation of a permit. Each day a violation shall be allowed to continue shall constitute a separate offense.

Sections 3-105 – 3-120. Reserved.

DIVISION 2. BEER BOARD

Section 3-121. Beer Board.

- (A) *Created; duty and authority.* The City of Gallatin Beer Board is hereby established and vested with the duty and authority to regulate the manufacture, storage, distribution, and sale of beer within the City in accordance with powers granted to local governments in Title 57, Chapter 5 of the Tennessee Code and as provided in this Article.
- (B) *Membership.* The Board shall be composed of three (3) residents of the City, over the age of twenty-one (21), who have lived in the City limits for at least two (2) years preceding appointment. The Mayor shall appoint the members for staggered three (3) year terms, which membership shall expire on December 31 or until a successor is appointed. Members of the Board shall receive no compensation.
- (C) *Removal.* Three (3) absences in a calendar year by a member of the Board shall result in mandatory resignation. Any member may be removed at any time with or without cause by the Mayor.
- (D) *Officers.* The Board shall elect from its membership, on an annual basis, a chairperson to preside at its meetings. The Board shall have the authority to designate any other officers as it deems necessary.

Section 3-122. Meetings of the Beer Board.

All meetings of the Board shall be open to the public. The Board shall hold regular meetings on the third Thursday of each month when there is business to come before the Board. A special meeting of the Board may be called by its chairperson, provided reasonable notice thereof is given to each Board member and public notice given a minimum of five (5) days in advance of such special meetings. Such public notice shall, at a minimum, include posting of same at City Hall and on the City website.

Section 3-123. Requirements for Quorum and Action.

The attendance of at least a majority of the members of the Board shall be required to constitute a quorum for the purpose of transacting business. Matters before the Board shall be decided by a majority of the members present, if a quorum is present. Any member present but not voting shall

be deemed to have cast a “nay” vote. The Board may adjourn a meeting at any time to another time and place.

Section 3-124. Record of Beer Board Proceedings to be Kept.

The City Recorder (or designee) shall attend all meetings of the Board. A separate record of the proceedings of all meetings of the Board shall be maintained. This record shall be a public record and shall contain at least the following: the date of each meeting; names of the Board members present and absent and, in cases of hearings before the Board, a record of evidence introduced and testimony heard before the Board and the provisions of each permit issued by the Board as to whether it is a permit for off-premises consumption or on-premises consumption or a combination thereof. The Recorder (or designee) shall also maintain a list of the names and addresses of all holders of beer permits, which list shall be kept on a current basis.

Sec. 3-125. Hearings before the Beer Board.

(A) All matters brought before the Board shall be heard in the following order:

- (1) Applications for issuance of beer permits;
- (2) Special hearings;
- (3) Violations in which permit holders are represented by counsel and/or at the request of the police.

(B) Those permit holders charged with violations shall be given written notice not less than five (5) days in advance to appear before the Board to answer charges.

(C) All alleged permit violators at the hearing have the right to contest any or all of the charges, to have the assistance of counsel, to cross-examine witnesses, and to testify and present witness(es) and evidence on their behalf.

(D) All witnesses in a contested matter before the Board shall first be sworn in by the City Recorder, or another person authorized to administer an oath, or by a certified court reporter prior to any testimony or evidence being given.

(E) The Rules of Evidence shall not apply at hearings; therefore, hearsay evidence is admissible in hearings before the Board.

(F) A recording shall be made of all contested Board proceedings.

(G) In assessing a penalty, the Board may consider the past record of the permit holder and location.

(H) Upon receiving an adverse ruling by the Board, an applicant or permit holder may:

- (1) Accept the decision and penalty; or
- (2) Seek review by the circuit or chancery court in the manner authorized by law.

(I) Any penalty assessed by the Board shall take effect at 12:01 a.m. on the date set by the Board and will be continuously enforced throughout the period of suspension or revocation. In the event a permit holder seeks review by the circuit or chancery court in the manner authorized by law, the enforcement period will become effective upon the disposition of the court review.

- (K) The Board shall cause the City Recorder to give written notice to the chief of police of any suspension or revocation.

Sections 3-126 – 3-150. Reserved

DIVISION 3. PERMITS

Section 3-151. Permit Required for Engaging in Beer Business.

It shall be unlawful for any person to sell or to manufacture, distribute, or store beer for resale without first applying for and obtaining a permit from the Board.

Section 3-152. Classification of Permits.

(A) The Board shall have the authority to issue the following classes of permits:

- (1) *Manufacturer permit.* A manufacturer permit authorizes a permit holder who has complied with the requirements of T.C.A. § 57-5-102 to manufacture beer and to store, distribute, sell at wholesale, and sell at retail, for both on-premises and off-premises consumption to the extent permitted by and in accordance with T.C.A. § 57-5-101 and other applicable state law.
- (2) *Distributor permit.* A distributor permit authorizes a permit holder to store beer in a warehouse or similar facility within the City, to transport beer, and to sell or otherwise distribute beer at wholesale within the City. A distributor who does not maintain a storage facility within the City is not required to obtain a distributor permit to sell or otherwise distribute beer at wholesale within the City.
- (3) *Off-premises retail permit.* An off-premises permit is one issued to a person or legal entity engaged in the sale of beer where it is not to be consumed by the purchaser upon the premises of the seller, except as specifically allowed herein.

There shall be two (2) sub-classes of the off-premises permit:

- a. Package retail sales.
- b. Growler sales. Applicants for off-premises permits must list each sub-class for which they apply. Off-premises growler permits will be issued for the retail sale of beer in “growlers.” The term “growler” means a glass bottle not to exceed sixty-four (64) ounces that is filled by a permittee or employee of the permitted establishment with beer from a keg. Growlers may only be filled from kegs procured by the permittee from a duly licensed wholesaler. Growlers must be filled in a manner that is sanitary and meets all applicable food and alcohol handling laws and standards. Each growler must be securely sealed and removed from the premises in its original sealed condition. Consumption of beer on premises is strictly prohibited, except samples of tap beer offered for sale may be made available, but individual samples shall not exceed one (1) ounce per sample, nor shall any one (1) individual be offered or consume more than four (4) one (1) ounce samples per business day.

- (4) *On-premises retail permit.* An on-premises retail permit authorizes a permit holder to engage in the retail sale of beer where the beer is to be consumed by the purchaser or the purchaser's guest upon the permit holder's premises. On-premises retail permits require:
- a. Meals must be regularly served at tables or counters; or
 - b. For hotels, meals must be regularly served at tables or counters or to persons in guest rooms, either through room-service delivery or via locked in-room units operated in accordance with T.C.A. § 57-5-107.
- (5) *Combined retail permit.* A combined retail permit authorizes a permit holder to engage in the retail sale of beer for consumption both on and off the permit holder's premises.
- (6) *Special event/temporary permit.* Special event permits may be issued by the Board after payment of a fifty dollars (\$50.00) fee under the following circumstances and governed by the following provisions:
- a. *One event permit for private businesses.* Temporary beer permits not to exceed twenty-four (24) hour duration may be issued by the Board at the request of the applicant upon the same conditions governing permanent permits. A temporary permit shall be limited to three (3) events per business in any twelve (12) month period. Special events permits for private businesses shall not allow the sale, storage or manufacture of beer on publicly owned property.
 - b. *One event permits for nonprofit organizations.* A temporary permit authorizing the sale of beer on public property may be issued to a bona fide charitable or nonprofit organization or bona fide political organization, subject to approval of the appropriate governmental authority charged with the management of such publicly owned property and the Board. Documents showing evidence of the type of organization shall be submitted with the application. A temporary permit shall be limited to three (3) events per organization in any twelve (12) month period.
 - c. *Multiple event permit for nonprofit organizations.* Subject to the submission of a proper application and the payment of the application fee, the Board is authorized and empowered in its discretion to issue special event permits to bona fide charitable or nonprofit organization for special events for a maximum of ten (10) events in any twelve (12) month period. No single special event shall be longer than forty-eight (48) hours in duration. The Board may issue a special event permit under such terms, conditions, rules and regulations as the Board may establish which are not inconsistent with state law regulating the sale of beer.
 - d. *Notice of intent to conduct a special event.* Any person, organization or other entity with a special event permit conducting an event during which beer is to be sold shall provide at least thirty (30) days' advance written notice to the Board, with a copy to the City Recorder, of the intent to conduct such a special event. The notice required by this part shall include, but not necessarily be limited to, the following information:

1. Date and time of the event;
2. The sponsor of the event;
3. The specific location where any beer is to be sold outside;
4. Any plans for proposed temporary closure of public rights-of-way;
5. Plans for security and policing of the event;
6. The anticipated number of persons attending the event;
7. Plans for clean up during and after the event;
8. Plans for sanitary facilities and for safety inspections as determined by the fire department;
9. Indemnification: For events held on public property, a written agreement that will indemnify and hold the City, its officials and employees harmless from any claim resulting from the event; and
10. Liability insurance: For events held on public property, provide to the City from an insurance company authorized to do business in the state a comprehensive general liability insurance policy, applicable to the serving of beer at the event and providing insurance coverage for all liabilities including death, personal injury or property damage, arising out of, or in any way related to, the event described, in the amount of \$1,000,000.00 combined single limits. Such insurance shall be in a form satisfactory to the City Attorney and Risk Manager, shall include an endorsement naming the City as additional insured under the coverage afforded, shall be primary and noncontributing with respect to any other insurance available to the City, shall contain a severability of interest (cross liability) clause, and shall require the insurer to provide the City at least thirty (30) days' prior notice of cancellation. Proof of such insurance, also in a form satisfactory to the City Attorney and Risk Manager, shall be filed with the Risk Manager prior to the date of the event of the sponsoring organization.

Upon receipt of the notice as required in this subsection d, the proposed special event shall be placed on the agenda of the Board for its next regularly scheduled meeting following receipt of the notice, and the sponsor of the proposed event shall send a representative or representatives (a representative of the business, nonprofit organization and/or professional organization running the event, if applicable) to the Board meeting to address any questions or issues arising out of the proposed special event.

- e. *The downtown district.* The Board is hereby authorized and empowered in its discretion to permit the sale of beer in the downtown district for special events. The downtown district is defined as the area bounded by N. Water Ave. from E. Franklin St. to E. Main St. and the Public Square, excluding E. Main St. to a bona fide charitable or nonprofit organization holding a special event permit at such times and events and under such terms, conditions, rules and regulations as the Board may establish, which are not inconsistent with state law regulating the sale of beer, and including the temporary closure of public rights-of-way within the area with the express permission and cooperation of the City Council and the regulations

regarding temporary closure of public rights-of-way. It shall not be a violation of section 12-23 of the Municipal Code to consume alcoholic beverages in the downtown district sold at a special event when a special event permit has been issued by the Board.

- f. *Purchase from source other than licensee prohibited.* No charitable, nonprofit, political organization, or business possessing a special event permit shall purchase for sale or distribution beer from any source other than a licensee as provided pursuant to state law.
- (7) *Caterer permit.* A caterer permit authorizes a caterer to sell beer at various locations where the beer is to be consumed by the purchaser or the purchaser's guests upon the premises of the catered event site. No caterer permit shall be issued to a person or entity unless the person or entity: (i) holds a valid on-premises or combined retail beer permit for its permanent catering hall or restaurant; and (ii) is licensed as a caterer by the Tennessee Department of Health or whose permanent catering hall is licensed as a restaurant by the Tennessee Department of Health.

Sec. 3-153. Privilege Tax.

- (A) There is hereby imposed on the business of selling, distributing, storing, or manufacturing beer an annual privilege tax in the maximum amount permitted by T.C.A. § 57-5-04, as may be amended from time to time. Any person or business entity engaged in the sale, distribution, storage, or manufacture of beer shall remit the tax each successive January 1 to the City.
- (B) Written notice shall be mailed to each permit holder of the payment date of the annual privilege tax at least thirty (30) days prior to January 1 of each year to the address specified by the permit holder on the permit application. If the permit holder does not pay the tax by January 31 or within thirty (30) days after written notice of the tax was mailed, whichever is later, a notice by certified mail shall be sent to the permit holder giving notice that the tax payment is past due. If the permit holder does not pay the privilege tax within ten (10) days after receiving notice of the delinquency by certified mail, the permit shall be void.
- (C) At the time a new permit is issued to any person or business entity subject to this tax, the permit holder shall be required to pay the privilege tax on a prorated basis for each month or portion thereof remaining until the next payment date.

Sec. 3-154. Beer Permits shall be Restrictive.

All beer permits shall be restrictive as to the type of beer business authorized under them. It shall be unlawful and a violation of this Article for any permit holder to engage in any type of the beer business not expressly authorized by the permit issued to the permit holder. It shall likewise be unlawful and a violation of this Article for a permit holder not to comply with an express restriction or condition established in this Article or set forth in the permit holder's permit. If a permit holder desires to engage in a type of beer business not authorized under the permit issued to the permit holder, the permit holder must apply to the Board for a new permit.

Sec. 3-155. Permit issuance; validity; restrictions on issuance; sales generally.

- (A) Permits shall be issued to the applicant, whether a person or business entity. Subject to the provisions of division (F) herein, permits shall be valid only for a business operating under the name identified in the permit application.
- (B) A permit cannot be transferred to another person or business entity. The transfer of fifty percent (50%) or more of the beneficial interests in any business entity which is the holder of the permit shall constitute a change of control and render the permit invalid.
- (C) A permit shall be valid only for a single location, except as provided in subsection (D) of this section, and cannot be transferred to another location. A permit shall be valid for all decks, patios, and other outdoor serving areas that are contiguous to the exterior of the building in which the business is located and that are operated by the business.
- (D) Every application for a beer permit shall state the class or classes of permits requested. The number of businesses for which permits may be issued is unlimited; provided, however, a permit holder who operates two (2) or more restaurants or other businesses within the same building may, in the permit holder's sole discretion, operate all or some of the businesses pursuant to the same permit. Such multiple use permits must be issued for the classes applicable to the conduct of the restaurants or businesses.
- (E) A permit shall automatically expire upon termination of the business, a change in ownership, the relocation of the business, or a change in the name of the business; provided, however, that if the holder of the permit advises the City Recorder of the anticipated new name of the business before the name of the business is changed, the City Recorder shall change the records to reflect that the subject beer permit is then issued in the name of the new business. A permit holder must return a permit to the City Recorder within fifteen (15) days of termination of the business, a change in ownership, the relocation of the business, or a change in the name of the business. Failure to return the permit shall have no effect on the automatic expiration of the permit under such circumstances. This provision shall have no application to the temporary closing of a business for the purpose of constructing improvements, provided the business reopens under the same name and ownership.
- (F) Except as otherwise provided in subsection (E), a beer permit shall automatically expire and cease to be valid if beer is not sold, distributed, or manufactured by the permit holder on the permitted premises for any continuous six (6) month period after issuance of the permit.
- (G) For on-premises retail and mixed retail permits, the applicants must serve at least one (1) hot meal a day at tables provided for that purpose with a menu available during regular business hours. At the time of initial application and on the occasion of each annual renewal thereafter, a copy of the current menu must be submitted. The permit holder of an on-premises retail or mixed retail permit must continue to offer the menu items, or their equivalents, throughout the permit year. If upon inspection, it is determined that the permit holder is not serving meals as required by this subsection, such shall be grounds for immediate permit revocation by the Board.
- (H) For off-premises retail permits, the permit holder shall not allow consumption of beer on the premises, adjoining sidewalks or streets, or within two hundred (200) feet of the immediate premises, including the building and parking lot.

- (I) The Board, in its discretion, may refuse to issue a permit for any place of business where, in the period immediately preceding the application for a permit, a business was operated in such a manner as to create a public nuisance or was operated in such a manner as to materially contribute, with places of like character in its vicinity, to the creation or maintaining of a public nuisance. In determining whether a permit shall be issued, the Board shall consider the character of the neighborhood, the space available for the building, the space available for off-street parking, and the effect of the business on its neighbors.
- (J) Each applicant for a permit shall pay to the City Recorder, a minimum business license fee and gross receipts tax annually in order to renew the permit. The City Recorder shall notify businesses which fail to pay the annual renewal tax by certified mail not later than February 28 and such failure to file and pay the tax shall result in presentation to the Board for possible revocation.
- (K) Any person or business entity engaged in the sale, distribution, or manufacture for sale of beer without the permit required by this Article commits a misdemeanor, which shall be punishable under the general clause for this Code.

Sec. 3-156. Application for Permit; Fee.

- (A) The owner of any business or other entity desiring to sell, distribute, manufacture, or store beer within the City, or an authorized agent thereof, shall file a written application for the desired permit in person with the City Recorder. Applicants seeking multiple permits or multiple classes of permit must submit a separate application for each permit sought.
- (B) The written application shall be made on such form as the Board shall prescribe and furnish.
- (C) Each application for a permit, other than a special event permit, shall be accompanied by a non-refundable application fee of two hundred fifty dollars (\$250.00). Applications for special-event permits, including applications seeking a permit covering more than one (1) event, shall be accompanied by a non-refundable application fee of fifty dollars (\$50.00).
- (D) No completed application will be presented for consideration by the Board unless the City Recorder has had at least fifteen (15) days to review and process the application; provided, however, the Board may waive this requirement and consider a completed application if the Board deems such action appropriate under the circumstances.
- (E) The applicant shall certify that the applicant has read and is familiar with the provisions of this Article.
- (F) An applicant shall disclose the following information in the application:
 - (1) Name of the applicant;
 - (2) Name of applicant's business;
 - (3) Location of business by street address or other geographical description to permit an accurate determination of conformity with the requirements of this section;
 - (4) Telephone number for the proposed business location;
 - (5) If beer will be sold at two (2) or more restaurants or other businesses at the same location pursuant to the same permit, a description of all such businesses;
 - (6) Persons having at least a five percent (5%) ownership interest in the applicant;

- (7) Identity and address of a representative to receive annual tax notices and any other communication from the City;
 - (8) Certification that no person who has at least a five percent (5%) ownership interest in the applicant or any person to be employed in the distribution or sale of beer by the applicant has been convicted of any violation of the laws regulating the possession, sale, manufacture, or transportation of beer or other alcoholic beverages, any felony, or any crime involving moral turpitude within the past ten (10) years;
 - (9) Certification that no owner or manager has been convicted of driving under the influence (DUI) within the last two (2) years;
 - (10) The class of permit requested; and
 - (11) Such other relevant information as may be required by the City.
- (G) All individuals holding at least a five percent (5%) ownership interest in the applicant must present proof that they are citizens or lawful residents of the United States. Applicants may satisfy this requirement by presenting any of the following official documents for inspection by the City Recorder: (1) a U.S. Passport or Passport Card; (2) a Permanent Resident Card ("Green Card"); or (3) a birth certificate issued by: (a) the United States government; or (b) the government of any State of the United States, the District of Columbia, the Commonwealth of Puerto Rico, or any other territory or possession of the United States. This requirement shall not apply where no individual holds at least a five percent (5%) ownership interest in the applicant.
 - (H) An applicant for an on-premises or combined retail permit must establish that the number of parking spaces on the applicant's premises meets or exceeds the applicable requirements established by the City's Zoning Ordinance.
 - (I) The applicant shall authorize the City to conduct a background investigation of the applicant and shall waive any right the applicant may have to privacy concerning arrests reflecting on the moral character of the applicant.
 - (J) An applicant shall amend or supplement the application promptly if prior to the Board's consideration of the application, a change in circumstances alters or otherwise affects the information contained in the application.
 - (K) Any applicant whom the Board determines has made a false statement or misrepresented a material fact in any application with the intent to deceive the City or its officers and employees shall forfeit any permit issued to the applicant and shall not be eligible to receive any permit for a period of ten (10) years.
 - (L) Where the Board has denied a person's application three (3) times, the person shall not be allowed to apply again for a permit on the same premises until after the expiration of one (1) year from the date of the third denial.
 - (M) The City Recorder may waive the fees imposed by this section where:
 - (I) A permit holder applies for a new permit based solely upon a change of the name under which the business operates with no change whatsoever in the ownership, type, or location of the business; or

- (2) A permit holder applies for a new permit based solely upon a change of the permit holder's legal name, with no change whatsoever in the ownership, type, or location of the business, provided that in either circumstance the change in name does not also require the permit holder to obtain a new certificate of occupancy from the City's Building and Codes Department. A permit holder applying for a new permit based solely upon a change of the permit holder's legal name shall present to the City Recorder, in the case of an individual, a court order changing the individual's legal name, or, in the case of a corporation, limited liability company, limited liability partnership, limited partnership, or partnership, a certified copy of the amendment form filed with the Tennessee Secretary of State changing the entity's legal name.

Section 3-157. Applicant criminal background check.

- (A) An applicant, along with any individual holding at least a five percent (5%) ownership interest in the business, must submit to a fingerprint-based criminal background check through the Tennessee Bureau of Investigation's Tennessee Application Processing Services (TAPS) program. The results of such checks shall be sent directly to the City as the originating agency as authorized by T.C.A. § 57-5-103.
- (B) Notwithstanding the requirements of the preceding subsection (A), if no individual person holds at least a five percent (5%) ownership interest in the applicant, the applicant's manager will be required to submit to the background check.
- (C) An application will not be considered complete unless the City Recorder has received the results of the applicant's criminal background check.
- (D) An applicant's criminal background check will remain valid for one hundred eighty (180) days from the date of the background check. An applicant who does not secure a permit for a specific premises within this period shall be required to submit to a new fingerprint-based criminal background check in accordance with the requirements of this section.

Section 3-158. Applicant - Compliance with other provisions of City Code.

- (A) No beer permit shall be issued to any applicant for a specific location where there exists one (1) or more signs that are in violation of the sign ordinance of the City.
- (B) No beer permit shall be issued to any applicant who occupies or proposes to occupy premises for the sale of beer where conditions exist on such premises that are in violation of the building, fire, electrical, mechanical, gas, and property maintenance codes adopted by the City, to the extent applicable under the circumstances; provided, however, the Board may conditionally approve an application subject to the condition that the premises pass all required building and code inspections before the City Recorder may issue the requested permit.
- (C) No beer permits shall be issued to any applicant for a specific location unless the proposed use complies with the Gallatin Zoning Ordinance or the property owner has obtained a variance or special use permit for the proposed use.
- (D) This section shall not apply with respect to any applicant for an on-premises retail permit for state-owned property.

Section 3-159. Approval of application; denial of application; issuance of permit.

- (A) The Board may, but is not required to, conduct a formal hearing on a permit application before voting to approve or deny the request for a permit.
- (B) Where an applicant has satisfied the requirements for issuance of a particular class of permit and all other general requirements contained in this Article, the Board shall approve the permit application. Within ten (10) business days following the Board's approval of an application, the City Recorder shall issue a permit in the name of the owner of the business that submitted the application.
- (C) Permits shall be issued to the owner of the business or other entity responsible for the premises for which the permit is sought, regardless of whether such owner is an individual, corporation, limited liability company, partnership, joint-stock company, syndicate, association, or governmental or other entity.
- (D) The Board shall not approve an application unless the applicant establishes to the satisfaction of a majority of the Board's members that:
 - (1) All individuals having at least a five percent (5%) ownership interest in the applicant have been citizens or lawful residents of the United State for not less than one (1) year immediately preceding the date upon which the application is made to the City Recorder;
 - (2) No beer will be sold except at places where such sale will not cause congestion of traffic or interference with schools, places of worship, or other places of public gathering, or otherwise interfere with public health, safety, and morals;
 - (3) No sale of beer shall be made to any person under twenty-one (21) years of age;
 - (4) No person having at least a five percent (5%) ownership interest in the applicant has been convicted within the past ten (10) years of: (i) violating any federal, state, or local law the possession, sale, manufacture, or transportation of beer or other alcoholic beverages; (ii) any felony; or (iii) any crime involving moral turpitude;
 - (5) No person who is or will be employed by the applicant in the manufacture, storage, distribution, or sale of beer has been convicted within the past ten (10) years of: (i) violating any federal, state, or local law the possession, sale, manufacture, or transportation of beer or other alcoholic beverages; (ii) any felony; or (iii) any crime involving moral turpitude;
 - (6) No owner or manager has been convicted of driving under the influence (DUI) within the last two (2) years; and
 - (7) No sale shall be made for on-premises consumption unless the application so states.
- (E) The Board may delay consideration of an application where the applicant faces pending charges of: (i) violating a federal, state, or local law regulating the possession, sale, manufacture, or transportation of beer or other alcoholic beverages; (ii) any felony; or (iii) any crime involving moral turpitude.
- (F) In determining whether or not the applicant's proposed business will cause or be likely to cause congestion of traffic, interference with schools, churches, or other places of public gathering, or will interfere with or be likely to interfere with, injure or adversely affect the

public health, safety and morals for the purposes of this section, the Board is expressly authorized and required to take into consideration all facts, conditions and circumstances that may be relevant to the inquiry in a particular case.

- (G) No new permit shall be issued to permit the sale of beer on the premises for which a prior permit has been revoked for at least one (1) year after the date the revocation of the prior permit becomes final; provided, however, the Board, in its discretion, may determine that issuance of a new permit before the expiration of one (1) year from such date is appropriate, if the person or owner applying for such issuance is not the person, co-owner, family member, or affiliated or related business of the person, owner or business that held the previously revoked permit.
- (H) No new permit shall be issued to an applicant who has been assessed a civil penalty under this Article until the applicant has paid such penalty in full.
- (I) An applicant may appeal a decision of the Board denying the applicant's request for a permit pursuant to law.

Sections 3-160 – 3-199. Reserved.

DIVISION 4. REGULATIONS

Section 3-200. Permit - Consent to inspection of premises and records; display of permit; identification of Manager.

Every permit issued by the Board is issued subject to the following conditions:

- (A) The permit holder shall allow the permitted premises to be inspected, at any time the premises is open for business, by any duly authorized agent of the Board, by City's codes inspectors, by any Gallatin police officer, or by other duly authorized law enforcement officers or health officials.
- (B) The permit holder shall keep invoices and all other documents relating in any way to the storing, sale, distribution, or manufacture of beer, and shall permit the City Recorder or the City Recorder's designee to inspect, at any time the permitted premises is open for business, all such articles, containers, packages, invoices, books, papers, memoranda, and other documents as may be deemed necessary in the opinion of the City Recorder or the City Recorder's designee to determine whether or not all local taxes have been paid and/or to determine the amount of such taxes that may be due.
- (C) The permit holder shall display all permits issued by the Board in a conspicuous place, together with all other permits, licenses, and stamps required by law.
- (D) Except where a permit is issued to a natural person, the name of the manager responsible for the sale, distribution, or manufacture from the permitted premises shall be provided to the City Recorder. In the event of a change in management, the permit holder shall provide the name of the new manager to the City Recorder within thirty (30) days of such change.

Section 3-201. Permit - Caterers; notice requirements; location restrictions.

In addition to the other requirements of this Article, all caterer permits are subject to the following notice requirements and location restrictions:

- (A) A person holding a caterer permit must give advanced written notice to the City Recorder via email, facsimile, or U.S. mail at least five (5) business days before each event catered by the permit holder for which beer will be sold and consumed. Such notice shall include the date, time, and location of the event and identify the person that has contracted with the permit holder to cater the event.
- (B) No caterer permit shall be valid for the sale and consumption of beer on any premises for which an on-premises or combined retail permit has been revoked in the preceding twelve (12) months.
- (C) A caterer must make its permit or a copy thereof available at each event catered by the permit holder for inspection by duly authorized agents of the Board, by City code inspectors, by a Gallatin police officer, or by other duly authorized law enforcement officers or health officials.

Section 3-202. Prohibited activity.

- (A) *Sales of beer to persons under the age of twenty-one (21) prohibited.* No permit holder nor any employee thereof shall sell beer or permit beer to be sold to a person under twenty-one (21) years of age.
- (B) *Sale to intoxicated or incapacitated person.* No permit holder nor any employee thereof shall sell beer or permit beer to be sold to a visibly intoxicated or otherwise mentally incapacitated person.
- (C) *Loitering of certain individuals prohibited.*
 - (1) No permit holder nor any employee thereof shall allow any person under twenty-one (21) years of age to loiter in or about the permit holder's premises near where beer for off-premises retail sale is physically located.
 - (2) No permit holder nor any employee thereof shall allow an intoxicated person to loiter about the permit holder's premises.
- (D) *Hours of sale.* No permit holder nor any employee thereof shall sell beer or permit beer to be sold or consumed on the permit holder's premises between the hours of 3:00 A.M. and 10:00 A.M. on Sundays and between the hours of 3:00 A.M. and 6:00 A.M. on any other day. This subsection (E) shall not apply to beer sold by hotels via locked in-room units operated in accordance with T.C.A. § 57-5-107.
- (E) *Employment of certain individuals prohibited.* No permit holder shall employ any person in the manufacture, storage, distribution, or sale of beer who:
 - (1) Is under eighteen (18) years of age; or
 - (2) Has been convicted of any violation of the laws regulating the possession, sale, manufacture, or transportation of beer or other alcoholic beverages or any crime involving moral turpitude within the past ten (10) years.
- (G) *Purchase by lawful purchaser for consumption by minor prohibited.* No permit holder nor any employee thereof shall knowingly:

- (1) sell beer or permit beer to be sold to a lawful purchaser who is purchasing the beer for consumption by a minor; or
 - (2) allow beer to be passed from a lawful purchaser or possessor to a minor for consumption on the permit holder's premises.
- (H) *Disorderly conduct and criminal activity on premises prohibited.* No permit holder nor any employee thereof shall:
- (1) Permit disorderly conduct on the permit holder's premises; or
 - (2) Knowingly permit an individual to engage in any criminal activity on the premises.
- (I) *False statements.* No permit holder shall make a false statement or misrepresentation of a material fact in any application for a permit or relating to an existing permit.
- (J) *Adequate toilet facilities; compliance with health and safety regulations.* No permit holder shall fail to provide and maintain sanitary toilet facilities or fail to comply with any state, county, or local health, building, or property maintenance codes and regulations.
- (K) *Failure to pay privilege tax.* No permit holder shall fail to pay the privilege tax imposed pursuant to T.C.A. § 57-5-104.
- (L) *Maintaining or operating premises in manner detrimental to public health, safety, or morals.* No permit holder shall maintain or operate premises in a manner detrimental to public health, safety, or morals. A permit holder shall not permit customers or employees to be nude, topless, or bottomless at any time.
- (M) *Failure to maintain required records.* No permit holder shall fail to comply with recordkeeping requirements established by this Article or fail to make such records available for inspection by the City Recorder or the City Recorder's designee.
- (N) *Wholesale purchase of beer by certain permit holders.* No person holding an on-premises, off-premises, or combined retail permit shall purchase beer from anyone other than a wholesaler located in Tennessee and licensed in accordance with T.C.A. § 57-5-201.
- (O) *Signs.* No permit holder shall maintain any sign, advertisement, or display that violates state law or city ordinance.
- (P) *Lighting, windows and visibility.* No permit holder shall allow the sale of beer where there is insufficient lighting for employees to properly inspect the government-issued identification cards for the age and photo identification of customers. No permit holder may allow the windows to be painted or be otherwise opaque to restrict visibility to the fullest extent, consistent with the structure of the establishment such that full, free and unobstructed vision may be afforded to the place of sale or dispensing of beer.
- (Q) *Violations.* Violations of subsections (A) through (P) above shall be prima facie evidence that the violation is allowed by the permit holder, and the burden of proof to prove otherwise shall be shifted to the permit holder.

Sec. 3-203. Responsible Vendor Certification for off-premises retail sale.

Permit holders may voluntarily participate in the Commission's Responsible Vendor Training Program for off-premise retail sales by complying with the Tennessee Responsible Vendor Act of

2006, set forth in Tennessee Code Annotated § 57-5-601 *et seq.* and any rules set forth by the Commission. By successfully participating in the program, the permit holder shall receive a reduction in penalty for the first offense sale to a minor. The Board shall be limited to a civil penalty as specified in this Division, and suspension or revocation of the permit shall not be an option. It shall be the permit holder's responsibility to provide the City Recorder with a copy of a valid certification as required by this Article.

Successful completion of the responsible vendor training program includes but is not limited to the following:

- (1) Each clerk must successfully complete a responsible vendor training program within sixty-one (61) days of commencing employment.
- (2) No clerk may sell beer for off-premises consumption unless the clerk successfully completes the responsible vendor training program and has been issued a certificate of completion.
- (3) Each clerk who has successfully completed the responsible vendor training program shall be issued a badge by permit holder and worn at all times while on duty.
- (4) Permit holders shall provide instruction approved by the Commission to all employees including, but not limited to, the laws of the sale of beer for off-premises consumption, methods of recognizing and dealing with underage customers, and procedures for refusing to sell beer to underage customers and for dealing with intoxicated customers.
- (5) Permit holders shall require all clerks to attend at least one (1) annual meeting held by the Commission regarding responsible vendor policies and procedures as set forth by the Commission.
- (6) Permit holders shall maintain employment records and all responsible vendor training records of all clerks.
- (7) Permit holders shall comply with any other rule, regulation or requirement of state law regarding responsible vendors.

Section 3-204. Suspension and revocation of beer permits.

- (A) All permits issued by the Board under the provisions of this Article shall be subject to suspension or revocation by the Board for the violation of any of the provisions of this Article or of state law. Suspension or revocation proceedings may be initiated by the City Recorder, any member of the Board, or the police chief. The Board is vested with full and complete power to investigate charges against any permit holder and to cite any permit holder to appear and show cause why the permit should not be suspended or revoked.
- (B) When the Board shall have reason to believe that any permit holder shall have violated the provisions of the state beer act or any of the provisions of this Article, the Board is authorized to notify the permit holder of said violations and to cite said permit holder, by written notice, to appear and show cause why the permit should not be suspended or revoked for such violations. Said notice to appear and show cause shall state the alleged violations charged and shall be served upon the permit holder at the address indicated by the permit holder either by certified mail, return receipt requested or by a member of the Gallatin Police Department. The

notice shall be served upon the permit holder at least five (5) days before the date of the hearing. Adequate public notice under the circumstances shall be given of the hearing.

- (C) At the hearing the Board shall publicly hear the evidence both in support of the charges and on behalf of the permit holder. After such hearing, if the charges are sustained by the evidence, the Board may, in its discretion, suspend or revoke said permit.
- (D) The action of the Board in all such hearings shall be final. When a permit has been revoked, no new permit shall be issued for the sale of beer at the same location until the expiration of: (a) one (1) year (three hundred sixty-five (365) days) from the date said revocation becomes final, or (b) ninety (90) days from the date ownership in the property where the establishment is located changes hands after the date the revocation becomes final. A change in ownership in this instance means outside the immediate family of the original individual owners, and further means that no original owner or immediate family may continue to have any interest in a partnership, corporation, or other business entity involved in successor ownership.
- (E) Responsible vendor certification. If permit holder is certified as a responsible vendor, it is the permit holder's responsibility to furnish to the City Recorder a copy of such certification immediately upon service of the notice of hearing, but in no event less than four (4) days prior to the hearing. The City Recorder will check the certification. Upon proof of valid certification, the Board shall only assess a civil penalty as specified in this Division. The Board shall not have the option of suspension or revocation on a first offense sale to a minor.
- (F) If the Board determines that a sale to a minor occurred by an off-premises beer permit holder certified under the responsible vendor act, the Board shall cause the City Recorder to notify the Commission within fifteen (15) days of such finding of the name of the permit holder and the clerk.
- (G) Except as otherwise provided by this Article or state law, the Board may exercise discretion in determining whether to suspend or revoke a permit, in determining the appropriate length of a suspension, and in determining the dates the suspension or revocation shall become effective, dependent upon the facts and circumstances presented in each case.

Section 3-205. Civil penalty in lieu of revocation or suspension.

- (A) Penalty, revocation, or suspension. The Board may, at the time it imposes a revocation or suspension, offer a permit holder that is not a responsible vendor the alternative of paying a civil penalty not to exceed two thousand, five hundred dollars (\$2,500.00) for each offense of making or permitting to be made any sales to minors, or a civil penalty not to exceed one thousand dollars (\$1,000.00) for any other offense.
- (B) The Board may impose on a responsible vendor a civil penalty not to exceed one thousand dollars (\$1,000.00) for each offense of making or permitting to be made any sales to minors or for any other offense.
- (C) If a civil penalty is offered as an alternative to revocation or suspension, the permit holder shall have seven (7) days within which to pay the civil penalty before the revocation or suspension shall be imposed. If the civil penalty is paid within that time, the revocation or suspension shall be deemed withdrawn. Payment of the civil penalty in lieu of revocation or suspension by a permit holder shall be an admission by the holder of the violation so charged and shall be paid to the exclusion of any other penalty that the City may impose.

- (D) In the event a special event occurs and the special event permit required by this Article is not secured by the sponsor of the special event, an administrative penalty of one hundred dollars (\$100.00) shall be imposed and the sponsor shall be ineligible to receive any future special event permits until the penalty is paid.

Section 3-206. Additional regulations.

- (A) All on-premises retail permit employees shall be required to have an ID badge or work apparel that clearly identifies the employee and distinguishes the employee from patrons of the establishment. Failure by employees to have an ID badge or work apparel on the permit holder's premises shall be grounds for permit suspension.
- (B) Locations with mixed retail permits shall be allowed to sell beer to go, provided that it is unopened, and is in its original container.
- (C) Each permit holder shall be required to complete and sign an affidavit certifying that it has read the ordinance governing the sale and consumption of beer and acknowledges responsibility to strictly enforce the beer ordinance in its establishment. Such affidavits shall be signed annually and kept on file in the City Recorder's office with the permit. Failure to complete the required affidavit shall be considered basis for permit revocation.
- (D) Each permit holder shall notify the Board of any change in address within ten (10) days thereof.

Sec. 3-207. Provisional permit; new facilities.

The Board, in its discretion, may issue a permit to a new business prior to its construction and operation. The permit shall be provisional in nature, pending final inspection of the facility, and in no event shall be valid for a period longer than sixty (60) days. The Board shall consider the type of permit requested and the nature of the business in its deliberations.

Sec. 3-208. Curbside delivery/pick-up service.

A permit holder may sell beer online for curbside pickup at the permit holder's location. Purchased beer must be delivered to the customer's vehicle, and the vehicle must be located within a paved parking area adjacent to the place of business. Beer sold through an online curbside pickup service must be pulled from the inventory located at the permitted location of the retailer providing the service, may not be pulled from the inventory of another retailer or permitted location, and must be delivered unopened in its original container. Any employee bringing beer to a vehicle for online curbside pickup must confirm the individual receiving the beer is at least twenty-one (21) years of age.

Sec. 3-209. Severability.

If any provision of this Article or the application therefore to any circumstance or person or any other entity subject to the provisions hereof is held invalid, such invalidity shall not affect other provisions or applications of this Article which can be given effect without the invalid provision or application, and to that end the Board declares the provisions of this Article to be so severable.

Sec. 3-210. Penalty.

Any person or business entity violating any of the ordinances of the City shall be fined not more than fifty dollars (\$50.00) or the maximum amount permitted by state law, whichever is greater, for each offense, and a separate offense shall be deemed committed for each day of violation.

Secs. 3-211 – 3-300. Reserved.

ARTICLE IV. BROWN BAGGING

Sec. 3-301. Regulations.

- (A) No owner, operator or employee of any business establishment, that does not have a valid beer permit, shall permit or allow any person to open, or to have open, or to consume inside or on the premises a bottle, can, flask or container of any kind or description, of alcoholic beverages or beer.
- (B) No owner, operator or employee of any business establishment possessing a valid beer permit shall permit or allow any person to open, or to have open, or to consume inside or on the premises a bottle, can, flask or container of any kind or description, of alcoholic beverages or beer, except such beer that is sold on the premises.
- (C) This section shall not apply to any business establishment possessing a valid permit for the on premises sale of alcoholic beverages issued by the state alcoholic beverage commission.

Sec. 3-302. Violations and penalty.

Any violation of this chapter by the owner, operator or employee of a business establishment not possessing a valid permit issued by the city for the on-premises sale of beer shall be punishable by monetary penalty of up to fifty dollars (\$50.00), with each day of violation constituting a separate offense.

Sec. 3-303. Punishment for violations.

Any violation of this Article by the owner, operator or employee of a business establishment possessing a valid permit for the on-premises sale of beer shall be subject to punishment as provided for other violations of the beer ordinance, including but not limited to, suspension or revocation of the beer permit.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

APRIL 26, 2022

DEPARTMENT: City Attorney and City Recorder

AGENDA #

SUBJECT:

Ordinance O2205-20 Amending Gallatin Municipal Code Chapter 3, Alcoholic Beverages

SUMMARY:

Amending the Municipal Code Chapter 3, Alcoholic Beverages in its entirety to reflect changes discussed during previous Council Committee meetings.

RECOMMENDATION:

Approve the Ordinance

ATTACHMENT:



Resolution
Ordinance



Correspondence
Contract



Bid Tabulation
Other

Approved
Rejected
Deferred

☐
☐
☐

Notes:

ORDINANCE NO. 02205-25

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, AMENDING THE GALLATIN ZONING ORDINANCE, ARTICLE 2, SECTION 02.02, DEFINITIONS, ARTICLE 3.0, USE CLASSIFICATION, SECTION 03.07, COMMERCIAL ACTIVITIES, CLASS AND TYPES, ARTICLE 7.00, PROVISIONS FOR MIXED-USE DISTRICTS, SECTION 7.02 INTENT AND DESCRIPTION FOR THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT, SECTION 07.03 INTENT AND DESCRIPTION OF THE MU-MIXED USE DISTRICT, ARTICLE 8.00, PROVISIONS FOR COMMERCIAL DISTRICTS, SECTION 08.01, INTENT AND PURPOSE OF CC-CORE COMMERCIAL DISTRICT, SECTION 08.04, INTENT AND PURPOSE OF THE PGC-PLANNED GENERAL COMMERCIAL DISTRICT, AND SECTION 8.05, INTENT AND PURPOSE OF PNC-PLANNED NEIGHBORHOOD COMMERCIAL DISTRICT, TO PERMIT ANIMAL CARE LIMITED AS A PERMITTED USE AND REMOVING THE USE OF ANIMAL CARE, WITH THE FOLLOWINGS CONDITIONS; AUTHORIZING THE REVISIONS TO BE MADE TO THE ZONING ORDINANCE; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the zoning code text amendment is in agreement and consistent with the recommendations of the *Plan Gallatin*, and

WHEREAS, Tennessee Code Annotated, Title 13, Chapter 7, Section 204 authorizes the City to amend its zoning code as necessary upon first being reviewed by the Planning Commission, and

WHEREAS, the Gallatin Municipal Planning Commission, pursuant to Section 15.07.040 of the Gallatin Zoning Ordinance reviewed and recommended approval of these amendments at the April 25, 2022 Planning Commission meeting; and

WHEREAS, the City Council of the City of Gallatin is authorized under Tennessee Code Annotated Title 13, Chapter 7, Section 201 to adopt Zoning regulations for the betterment of the city, and

WHEREAS, notice and public hearing before the Gallatin City Council has or will occur before final passage of these amendments pursuant to Section 15.07.060 of the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Zoning Code text amendment as described in Exhibit 'A'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Ordinance to show the changes in the text as described in Exhibit 'A'.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' –Text Amendment

Exhibit 'A'
Ordinance No. 02205-25

ARTICLE 2.0

* * * * *

Section 02.02 - Definitions

Animal Care Limited – A limited use, small scale animal care facility that provides medical services, training services, day and night care with or without boarding, for customary domesticated animals and pets.

* * * * *

ARTICLE 3.0

* * * * *

Section 03.07.011

* * * * *

Activity Type - Animal Care Limited – Includes the provision of animal care, treatment and boarding and similar services on a smaller scale. The use is limited by the minimum design and use restrictions

1. The building/leasable area building footprint shall be limited to no more than four thousand (4,000) square feet with no more than two structures per lot.
2. No livestock animals (which includes traditional farm animals such as horses, cattle, sheep, pigs or swine (other than Vietnamese pigs), goats, mules, donkeys or large exotic animals, chickens, or turkey) shall be treated or serviced on the site.
3. Accessory outside exercise/animal use areas shall not exceed 1,500 square feet in area for facilities located within 500 feet of an existing residence and accessory outside exercise/animal use areas shall not exceed 15,000 square feet for facilities more than 500 feet from an existing residence.
4. The accessory outside exercise/animal use areas shall not be permitted between the following hours:

6 p.m. to 8 a.m. on weekdays
6 p.m. to 9 a.m. on weekends
5. No building or structure in which animals are housed or kept shall be closer than 150 feet to any residential structure.

6. Kennels for boarding of non-livestock animals are permitted as an ancillary use subject to the following conditions:
 - a. The boarding shall occur within completely enclosed structures.
 - b. No more than thirty percent of the gross floor area of the facility may be used as a boarding kennel.
 - c. No outdoor kennel runs are permitted, except as permitted herein.
 - d. All boarding areas shall provide humane treatment, spaces and services compliant with law.

* * * * *

ARTICLE 7.00 PROVISIONS FOR MIXED-USE DISTRICTS

* * * * *

7.02 Intent and Description of MRO Multiple Residential and Office District

This class of district is intended to provide adequate and suitable space in appropriate location for high-density residential areas. Characteristics of permitted residential developments are buildings designed for multiple dwelling units, or designed to be attached with party walls. Commercial developments, having a minimum of characteristics objectionable in a high density residential environment, are permitted, if the activities therein minimize direct contact with the ultimate consumers of goods or services, or do not principally involve the sale, transfer, storage, or processing in these districts of goods or chattels. However, a selective list of retail trade and personal service uses are permitted if their principal purpose is to serve the recurring needs of the occupants or employees of other permitted uses in this district. In addition, use of buildings and land is permitted for community facilities and utilities necessary for serving these districts or for general community welfare. This class of district is appropriately located between districts characterized by lower density residential development and areas of more intensive commercial use, or they are extensions along major traffic arteries from areas used for more intensive commercial purposes.

07.02.010 Uses and Structures

A. Principal Permitted Uses and Structures - Within the Multiple Residential and Office Districts as shown on the Gallatin Municipal Zoning Map, the following activities, as described in Section 03.05 are permitted:

Residential Activities

- Dwelling, Attached
- Dwelling, Multi-Family
- Dwelling, One-Family Detached
- Dwelling, Two-Family Detached

Community Facility Activities

- Administrative
- Community Assembly
- Community Education
- Essential Service
- Nursing Home – Including Assisted Living
- Non-assembly Cultural
- Place of Worship

Commercial Activities

- Business and Communication Service
- Financial, Consulting, and Administrative
- Food Service
- General Personal Service
- Medical Service
- Animal Care Limited

B. Permitted Accessory Uses and Structures

1. Signs in accordance with the regulations contained in Section 13.07 of this Article.
2. Accessory off-street parking and loading facilities as required in Article 11.00.
3. Recreational uses associated with and maintained primarily for the uses permitted above and for the benefit and use of the occupants.
4. Accessory facilities and buildings customarily incidental and appurtenant to a permitted use provided that such accessory facilities and buildings are carried out on the same premises and are not otherwise prohibited.

C. Conditional Uses

The following activities may be permitted as conditional uses in accordance with Section 15.06.

Commercial Activity

- Utility and Vehicular
- Convenience Sales and Services
- Undertaking Services
- Group Assembly Extensive
- Group Assembly Limited
- Limited Retail Sales
- Transient Habitation

Community Facility Activities

- Intermediate Impact Community Facility
- Limited Child and Adult Care

* * * * *

07.03 Intent and Description of MU Mixed Use District

The purpose of the Mixed Use (MU) land use classification is to provide for a long-term mixture of residential and non-residential uses in portions of the community adjacent to major transportation routes. This purpose is intended to be carried out through the reliance on a market-driven approach to the appropriate uses in the various MU locations by utilizing a flexible zoning technique that permits a market-driven approach but requires a master plan for each MU project site or location.

It is envisioned that MU land use areas target relatively large, contiguous land areas that can be developed according to a unified plan in a high-quality, master-planned setting rather than on a lot-by-lot basis. The uses and standards in this category are intended to promote flexibility and innovation in site design and enhance the environmental quality and attractiveness of the area, enhance the natural or scenic qualities of the environment and protect the public health and safety.

07.03.010 Uses and Structures

Within the Mixed Use District, as shown on the Gallatin Municipal Regional Zoning Map and as delineated below and as described in Section 03.05 the following activities are permitted:

A. Permitted Uses

Residential Activities

- Dwelling, Attached
- Dwelling, Multi-Family
- Dwelling, One-Family Detached
- Dwelling, Two-Family Detached

Community Facility Activities

- Administrative
- Community Assembly
- Community Education
- Essential Service
- Limited Child and Adult Care
- Non-assembly Cultural
- Nursing Home – Including Assisted Living
- Place of Worship
- Utility and Vehicular

Commercial Activities

- Business and Communications Service
- Financial, Consulting, and Administrative
- Food Service

General Retail Sales and Service – Excluding Manufactured Home Sales
Facilities
Limited Retail Sales Activities
Medical Office/Service
Research Service
Transient Habitation
Undertaking Service
Animal Care Limited

B. Permitted Accessory Uses and Structures

1. Signs in accordance with the regulations contained in Section 13.07 of this Article.
2. Accessory off-street parking and loading facilities as required in Article 11.00.
3. Recreational uses associated with and maintained primarily for the uses permitted above and for the benefit and use of the occupants.
4. Accessory facilities and buildings customarily incidental and appurtenant to a permitted use provided that such accessory facilities and buildings are carried out on the same premises and are not otherwise prohibited.

C. Conditional Uses

The following activities may be permitted as conditional uses in accordance with Section 15.06.

Community Facilities

Intermediate Impact

Commercial Activities

Convenience Sales and Service

Food Service Drive In

* * * * *

**ARTICLE 8.00
PROVISIONS FOR COMMERCIAL DISTRICTS**

* * * * *

08.01 Intent and Purpose of the CC - Core Commercial District

This district is designed to provide for a wide range of retail, office, amusement, and service uses normally found in a central business district. High intensity of use is permitted in this district, and increased building bulk is provided as a means of encouraging such development. A setting conducive to and safe for a high volume of pedestrian traffic is desired. All such uses shall comply with the requirements of the International Building Code, whichever is more restrictive.

08.01.010 Uses and Structures

A. Principal Permitted Uses and Structures - Within the Core Commercial District as shown on the Gallatin Municipal Zoning Map, the following activities are permitted:

Residential Activities

- Dwelling, One--family detached
- Dwelling Attached
- Dwelling Two-Family
- Dwelling, Two-Family detached
- Upper-Story Residential with fire suppression system
- Multi-Family Dwellings, subject to the requirements contained in Articles 12.00 and 13.00.

Community Facility Activities

- Place of Worship
- Essential Service
- Community Assembly
- Non-assembly Cultural
- Administrative
- Utility
- Vehicular

Commercial Activities

- Convenience Sales and Service - Two-Pump Maximum
- Transient Habitation
- Food Service
- General Personal Service
- Financial, Consulting and Administrative
- Business and Communication Service
- General Retail Sales and Service
- Consumer Laundry and Repair
- Retail Business Supply
- Group Assembly – Limited
- Medical Services
- Undertaking Services
- Animal Care Limited

B. Permitted Accessory Uses and Structures

1. Signs as permitted in Section 13.07.
2. Accessory off-street parking facilities as required in Article 11.00.
3. Facilities and buildings customarily incidental and appurtenant to a permitted use.

C. Conditional Use

1. Dwelling, Upper Story Residential without fire sprinkling systems

2. Limited Child and Adult Care
3. Automotive Parking lot as a principal use

* * * * *

08.04 Intent and Purpose of PGC - Planned General Commercial District

The purpose of this district is to provide for modern, attractive, and efficient, retail, personal, professional, and commercial facilities with access needs that demand location along major arterial roadways. Uses permitted in this district are frequently automobile-oriented, and, as such, this district is most appropriately located along or at intersections of urban arterials or collector roadways, as identified on the City's Official Street Map. Also, since these corridors are major entryways and focal points in the City, landscape and buffer standards are instituted to provide commercial development which is more compatible and visually pleasing with adjacent residential areas. A master development plan for the development of the entire area is required, but the development may occur in stages.

08.04.010 Previously Approved Commercial PUD'S Applicability to the New Planned General Commercial District

Any project lawfully approved under the provisions of a Commercial Planned Unit Development zone (of this or any other government entity) is hereby approved under their original conditions and are hereby made as a new district of the zoning map of Gallatin as a part of this Ordinance for a period not to exceed two years from the date of the enactment of this Ordinance. If no final plan approval or building permit is requested on the subject property at the end of this period, the Planning Commission shall review its previous recommendations and actions on the subject property and provide to the governing authority a recommendation to: (1) extend the current approval of the subject tract for a period not to exceed two years; (2) revise the current approval in regards to the use, bulk, and/or design standards required of the current approval; or (3) cancel the current approval and impose a new base zoning district on the subject project.

08.04.020 Uses and Structures

Within the Planned General Commercial District, as shown on the Gallatin Municipal Regional Zoning Map, as delineated below and described in Article 3.00, the following activities are permitted:

A. Permitted Uses

Community Facility Activities:

- Administrative
- Community Assembly
- Essential Service
- Health Care
- Limited Child and Adult Care

Non-assembly Cultural
Nursing Home
Place of Worship

Commercial Activities:

Animal Care
Animal Care Limited
Business and Communication Services
Financial, Consulting, and Administrative Office
Food Service
Food Service - Drive-in
General Personal Service
General Retail Sales and Services
Group Assembly - Limited
Medical Services
Transient Habitation
Vehicular, Craft, and Related Equipment Sales
Limited Retail Sales
Automotive Parking
Automotive Servicing
Convenience Sales and Services
Retail Business Supply
Wholesale Sales

* * * * *

08.05 Intent and Purpose of PNC – Planned Neighborhood Commercial District

The purpose of this district is to provide for the establishment of planned neighborhood commercial areas that can efficiently serve day-to-day needs. Consolidation of convenience shopping facilities into planned shopping centers and integrated site designs is encouraged to avoid strip commercial development, lessen traffic conflicts, and improve the safety and convenience of customers. Planned neighborhood commercial areas are also encouraged in order to provide for the appropriate landscape buffers and site design needed to protect property values in adjacent areas. The regulations and conditions contained in this section are designed to ensure that planned neighborhood commercial areas will be developed at locations that will most efficiently serve the needs of the community.

08.05.010 General Standards for Making Determinations

Prior to the establishment of a new Planned Neighborhood Commercial District, the Planning Commission shall review the particular facts and circumstances of each proposal in terms of the following standards and shall find adequate evidence showing that the proposed use:

- A. Will be designed, constructed, operated, and maintained so as to be harmonious and appropriate in appearance with the existing or intended character of the general vicinity and that such a use will not change the essential character of the same area;
- B. Will not be hazardous or disturbing to existing or future neighboring uses;
- C. Will be a substantial improvement to property in the immediate vicinity and to the community as a whole;
- D. Will be served adequately by essential public facilities and services, such as highways, streets, police, and fire protection; drainage structures; refuse disposal; or schools; or that the persons or agencies responsible for the establishments of the proposed use shall be able to provide adequately any such service;
- E. Will not create excessive additional requirements at public cost for public facilities and services and will not be detrimental to the economic welfare of the community;
- F. Will not involve uses, activities, processes, materials and equipment, and conditions of operation that will be detrimental to any persons, property, or the general welfare by reason of excessive production of traffic, noise, smoke, fumes, glare, or odors;
- G. Will be consistent with the intent and purposes of this Ordinance.

08.05.015 Previously Approved Commercial PUDs Applicability to the New Planned Neighborhood Commercial District

Any project lawfully approved under the provisions of a Commercial Planned Unit Development zone (of this or any other government entity) is hereby approved under their original conditions and are hereby made a zone district of the zoning map of Gallatin as a part of this Ordinance for a period not to exceed two years from the date of the enactment of this Ordinance. If no final plan approval or building permit is requested on the subject property at the end of this period, the Planning Commission shall review its previous recommendations and actions on the subject property and provide to the governing authority a recommendation to: (1) extend the current approval of the subject tract for a period not to exceed two years; (2) revise the current approval in regards to the use, bulk, and/or design standards required of the current approval; or (3) cancel the current approval and impose a new base zoning district on the subject project.

08.05.020 Uses and Structures

A. Permitted Uses

Community Facility Activities:

- Administrative
- Assisted Living
- Community Assembly
- Essential Service
- Health Care

Limited Child and Adult Care
Non-assembly Cultural
Nursing Home
Place of Worship

Commercial Activities:

Business and Communication Service
Convenience Sales and Service, Excluding gasoline service station and
convenience store
Financial, Consulting, and Administrative
Food Service
Food Service Drive-in
General Personal Service
General Retail Sales and Services, Excluding Manufactured Home Sales Facilities
Group Assembly Limited
Medical Services
Automotive Parking
Limited Retail Sales
Animal Care Limited

* * * * *

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

May 10, 2022

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2205-25 of the City of Gallatin, Sumner County, Tennessee, amending the Zoning Ordinance of the City of Gallatin to remove Animal Care with the following conditions and add the Animal Care Limited use as a permitted use in select zoning districts.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, amending the Zoning Ordinance of the City of Gallatin, Article 2, Section 2.02, Definitions, Article 3, Use Classification, Section 03.07, Commercial Activities Class and Types, Article 7, Provisions for Mixed Use Districts, Section 07.02, Provisions and Description of MRO Multiple Residential and Office District, Section 07.03 Intent and Description of MU - Mixed Use District and Article 8, Provisions for Commercial Districts, Section 08.01 Intent and Description of the CC - Core Commercial District, Section 08.04, Intent and Description of PGC - Planned General Commercial District and Section 08.05 Intent and Purpose of PNC - Planned Neighborhood Commercial District, to permit the Animal Care Limited as a permitted use in select zoning districts; Authorizing the revision to be made to the Zoning Ordinance; Repealing conflicting ordinances; Providing for severability; and Providing an effective date.

On April 25, 2022, the Gallatin Municipal Planning Commission recommended approval of zoning as described in the Planning Commission minutes. (File# ZONE-2022-0065)

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

**ORDINANCE TO PROVIDE REVENUE FOR THE CITY OF GALLATIN
TENNESSEE FOR MUNICIPAL PURPOSES FOR THE 2022 TAX YEAR AND THE
2023 FISCAL YEAR**

BE IT ORDAINED by the City of Gallatin, Tennessee, that:

SECTION I. PROPERTY TAX:

A. All property, real, personal or mixed within the corporate limits of said City shall be and is hereby assessed for taxation for municipal purposes for the tax year 2022, except as is exempt from taxation by the Constitution and the laws of the State of Tennessee.

B. The levy be and is hereby made:

(1) to contribute to the general current expenses of said municipality that are paid from the General Fund; and

(2) to provide an amount, totaling \$2,691,850 to contribute to the retiring of the current year's principal and interest obligations;

a tax of eighty and one one-hundredth cents (\$0.8001) per every one hundred dollars (\$100.00) of taxable property.

C. All collections of property taxes from levies of past years be collected entirely in, and become revenue of the General Fund and that any expenses incurred in collecting such delinquent taxes be entirely expenses of the General Fund.

D. The Tax Assessor for Sumner County, Tennessee, is hereby authorized to assess all the property lying within the Corporate Limits of the City of Gallatin, Tennessee, and the assessment is hereby adopted as the assessed or taxable value of said property for municipal purposes for the City of Gallatin, Tennessee, upon which shall be levied the tax rate as provided in this ordinance.

SECTION II. BUSINESS TAX: The privilege tax levied by the General Assembly of the State of Tennessee known as the "Business Tax Act" and as amended, be and the same is hereby levied for municipal purposes for the City of Gallatin, Tennessee, for the year 2023 and all arts, trades, callings, or occupations created and declared to be a privilege within the City of Gallatin, and for their exercises within the City of Gallatin, the same taxes are hereby levied and shall be collected for the municipal purposes as are now levied and collected for State purposes under and by virtue of said Act of the General Assembly of the State of Tennessee, as amended.

SECTION III. IN-LIEU TAX: Pursuant to, T.C.A. § 7-34-115, payments in lieu of *ad valorem* taxes shall be paid by municipal utility systems to the municipality in an amount not to exceed the amount of taxes payable on privately owned property of similar nature.

SECTION IV. EFFECTIVE DATE: All laws and ordinances in conflict with this ordinance, be and the same are repealed, and this ordinance shall be effective from and after its passage, the public welfare requiring it.

PASSED FIRST READING:

PASSED SECOND READING:

PASSED THIRD READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

May 10, 2022

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Ordinance setting Tax Year 2022, Fiscal Year 2023 tax rate

SUMMARY:

Ordinance setting Tax Year 2022, Fiscal Year 2023 tax rate at \$0.8001

RECOMMENDATION:

Approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

**ORDINANCE OF THE CITY OF GALLATIN, TENNESSEE,
ADOPTING THE ANNUAL BUDGET FOR THE FISCAL YEAR BEGINNING
JULY 1, 2022 THROUGH JUNE 30, 2023.**

- Whereas, *Tennessee Code Annotated* Title 9 Chapter 1 Section 116 requires that all funds of the State of Tennessee and all its political subdivisions shall first be appropriated before being expended and that only funds that are available shall be appropriated; and
- Whereas, the Municipal Budget Law of 1982 requires that the governing body of each municipality adopt and operate under an annual budget ordinance presenting a financial plan with at least the information required by that state statute, that no municipality may expend any moneys regardless of the source except in accordance with a budget ordinance and that the governing body shall not make any appropriation in excess of estimated available funds; and
- Whereas, the governing body has published the annual operating budget and budgetary comparisons of the proposed budget with the prior year (actual) and the current year (estimated) in a newspaper of general circulation not less than ten (10) days prior to the meeting where the governing body will consider final passage of the budget.

NOW THEREFORE BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE AS FOLLOWS:

- SECTION 1:** That the governing body projects anticipated revenues from all sources and appropriates planned expenditures for each department, board, office or other agency of the municipality, herein presented together with the actual annual receipts and expenditures of the last preceding fiscal year and the estimated annual expenditures for the current fiscal year, and from those revenues and unexpended and unencumbered funds as follows for the fiscal year, and including the projected ending balances for the budget year, the actual ending balances for the most recent ended fiscal year and the estimated ending balances for the current fiscal years:

General Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenues			
Local Taxes	\$ 29,216,530	\$ 28,632,800	\$ 32,406,600
Licenses and Permits	3,247,237	3,006,950	3,070,000
Intergovernmental Revenue	9,335,324	11,237,518	9,230,986
Charges for Services	2,080,516	2,236,843	2,323,556
Fines and Forfeitures	593,851	503,550	473,750
Uses of Money & Property	1,210,170	269,158	122,500
Miscellaneous Revenue	4,805,848	960,478	475,000
Other Financing Sources			
Debt Proceeds	-	-	-
Transfers In from other fund	906,239	890,000	925,000
Total Cash Receipts	\$51,395,716	\$47,737,297	\$49,027,392

Appropriations			
Expenditures			
City Administration	\$ 843,766	\$ 1,067,983	1,207,664
Finance	630,252	748,727	664,899
City Recorder	381,431	551,446	498,598
Insurances	1,008,378	1,400,000	2,779,898
City Attorney	472,476	562,797	581,926
Information Technology	1,386,714	1,738,399	2,040,225
Human Resources	334,340	424,437	433,385
Engineering	2,469,243	9,677,194	4,818,417
Planning Commission	16,116	29,714	29,714
Planning	634,332	979,971	987,816
Government Buildings	421,482	567,086	515,267
Codes	1,492,178	1,758,058	1,608,560
Police Department	9,330,165	10,473,811	10,839,765
A.C.E.S. Program	75,670	110,000	110,000
Fire Department	7,843,639	9,113,658	10,778,244
Public Works Administration	428,322	1,238,770	471,399
Street Maintenance	1,180,960	1,897,700	1,961,015
Street Lighting and Signals	449,502	461,352	1,574,591
Vehicle Maintenance	596,050	645,465	674,364
Community Enhancement	148,200	183,500	185,470
Community Services	93,500	96,000	113,500
Civic Center	1,650,101	1,729,041	1,517,628
Golf Course	893,664	1,043,326	1,367,182
Parks	2,123,055	2,912,447	1,951,797
Economic Development	2,086,490	1,120,144	430,946
Economic Dev Utility	174,802	75,000	75,000
Tourism	-	25,000	25,000
Bond Expenses	2,079,650	2,717,024	2,693,450
Other Financing Uses			
Transfers Out	-	-	-
Total Appropriations	\$ 39,244,479	\$ 53,348,050	\$ 50,935,720
Change in Cash (Rec-Exp)	\$ 12,151,237	\$ (5,610,753)	\$ (1,908,328)
Beginning Cash Balance	\$ 14,254,030	\$ 26,405,267	\$ 20,794,514
Ending Cash Balance 6/30	\$ 26,405,267	\$ 20,794,514	\$ 18,886,186
Ending Cash as %	67%	39%	37%

Special Revenue Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Fines and Forfeitures	\$5,420	\$5,000	\$5,000
Donations	82,175	30,000	50,000
Total Cash Receipts	\$87,595	\$35,000	\$55,000

Appropriations			
Office Supplies	\$ 545	\$ 5,000	\$ 5,000
Grants & Donations	46,436	30,000	50,000
Total Appropriations	\$ 46,980	\$ 35,000	\$ 55,000
Change in Cash (Rec-Exp)	\$ 40,615	\$ -	\$ -
Beginning Cash Balance	\$ 2,624,747	\$ 2,665,362	\$ 2,665,362
Ending Cash Balance 6/30	\$ 2,665,362	\$ 2,665,362	\$ 2,665,362
Ending Cash as %	5673%	7615%	4846%

Stormwater Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Stormwater Utility Fee	\$1,901,980	\$1,900,000	\$1,900,000
Miscellaneous Revenue	52,264	0	0
Total Cash Receipts	\$1,954,244	\$1,900,000	\$1,900,000
Appropriations			
Stormwater Maintenance	\$ 580,739	\$ 1,061,948	\$ 759,743
Stormwater Administration	\$ 475,501	1,555,404	1,581,820
Total Appropriations	\$ 1,056,240	\$ 2,617,352	\$ 2,341,563
Change in Cash (Rec-Exp)	\$ 898,004	\$ (717,352)	\$ (441,563)
Beginning Cash Balance	\$ 506,175	\$ 1,404,179	\$ 686,827
Ending Cash Balance 6/30	\$ 1,404,179	\$ 686,827	\$ 245,263
Ending Cash as %		26%	10%

IDB/HEHFB Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Payment in Lieu	\$127,148	\$265,025	\$265,025
Application Fees	115	1,500	1,500
Total Cash Receipts	\$127,264	\$266,525	\$266,525
Appropriations			
IDB	\$ 114,469	44,970.00	44,970.00
HEHFB	\$ 21,083	160,290.00	160,290.00
Total Appropriations	\$ 135,552	\$ 205,260	\$ 205,260
Change in Cash (Rec-Exp)	\$ (8,288)	\$ 61,265	\$ 61,265
Beginning Cash Balance	\$ 131,750	\$ 123,462	\$ 184,727
Ending Cash Balance 6/30	\$ 123,462	\$ 184,727	\$ 245,991
Ending Cash as %		90%	120%

Environmental Serv Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Residential Collection	\$ 2,268,189	\$ 3,072,000	\$ 3,072,000
Other Revenue	1,860	351,378	-

Sale of Supplies	75,144	60,000	60,000
Total Cash Receipts	\$2,345,193	\$3,483,378	\$3,132,000
Appropriations			
Enviro Serv Administration	\$ 51,723	110,500	139,306
Waste Collection	2,029,594	2,985,388	3,054,473
Total Appropriations	\$ 2,081,317	\$ 3,095,888	\$ 3,193,779
Change in Cash (Rec-Exp)	\$ 263,876	\$ 387,490	\$ (61,779)
Beginning Cash Balance	\$ 767,574	\$ 1,031,450	\$ 1,418,940
Ending Cash Balance 6/30	\$ 1,031,450	\$ 1,418,940	\$ 1,357,160
Ending Cash as %	50%	46%	42%

Drug Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Federal DOJ Equitable Share	\$ 3,655	\$ 18,000	\$ -
Drug Fines	71,061	90,000	90,000
Other Revenue	37,161	-	-
Total Cash Receipts	\$111,876	\$108,000	\$90,000
Appropriations			
Drug Investigation/ Control	\$ 158,324	122,000.00	90,000.00
Total Appropriations	\$ 158,324	\$ 122,000	\$ 90,000
Change in Cash (Rec-Exp)	\$ (46,448)	\$ (14,000)	\$ -
Beginning Cash Balance	\$ 179,009	\$ 132,561	\$ 118,561
Ending Cash Balance 6/30	\$ 132,561	\$ 118,561	\$ 118,561
Ending Cash as %	84%	97%	132%

Water and Sewer Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Water Sales	\$ 9,763,400	\$ 10,260,000	\$ 10,510,000
Sewer Fees	6,721,762	6,703,750	6,856,000
Tap Fees	1,671,152	735,000	775,000
Donations	22,000	2,000,000	-
Miscellaneous	1,081,614	131,000	131,000
Other Financing Sources			
Debt Proceeds	-	-	-
Total Cash Receipts	\$19,259,927	\$19,829,750	\$18,272,000
Appropriations			
Administrative Department	\$ 1,261,346	\$ 1,878,826	\$ 1,571,890
Water Department	7,171,911	7,621,376	5,887,347
Sewer Department	12,509,419	15,540,211	4,424,252
Depreciation Expense	3,584,254	3,800,000	3,800,000
Debt Service	1,618,977	1,151,011	1,222,581

Other Financing Uses			
Transfers Out - In Lieu	489,229	559,612	559,612
Total Appropriations	\$ 26,635,136	\$ 30,551,035	\$ 17,465,681
Change in Cash (Rec-Exp)	\$ (7,375,209)	\$ (10,721,285)	\$ 806,319
Beginning Cash Balance	\$ 24,496,954	\$ 17,121,745	\$ 6,400,460
Ending Cash Balance 6/30	\$ 17,121,745	\$ 6,400,460	\$ 7,206,779
Ending Cash as %	64%	21%	41%

Gas Fund	FY 2021 Actual	FY 2022 Estimated	FY 2023 Proposed
Revenue			
Gas Sales	\$ 14,965,073	\$ 16,500,000	\$ 22,750,000
Miscellaneous	388,643	354,000	354,000
Other Financing Sources			
Debt Proceeds	-	-	-
Total Cash Receipts	\$15,353,716	\$16,854,000	\$23,104,000
Appropriations			
Administrative Department	\$ 474,709	\$ 1,043,133	\$ 738,684
Purchased Gas	8,525,194	12,250,000	16,800,000
Gas Department	3,046,856	3,848,929	4,216,517
Depreciation Expense	1,135,199	900,000	1,100,000
Debt Service	274,896	391,288	181,288
Other Financing Uses			
Transfers Out - In Lieu	417,010	302,664	420,000
Total Appropriations	\$ 13,873,863	\$ 18,736,014	\$ 23,456,489
Change in Cash (Rec-Exp)	\$ 1,479,853	\$ (1,882,014)	\$ (352,489)
Beginning Cash Balance	\$ 12,388,782	\$ 13,868,635	\$ 11,986,622
Ending Cash Balance 6/30	\$ 13,868,635	\$ 11,986,622	\$ 11,634,133
Ending Cash as %	100%	64%	50%

SECTION 2. At the end of the current fiscal year the governing body estimates balances as follows:

Fund	Estimated Fund Balance as of 30-Jun-22
General Fund	\$ 21,294,514
Special Revenue Fund	\$ 2,665,362
Stormwater Fund	\$ 786,827
IDB/HEHFB Fund	\$ 184,727
Environmental Serv Fund	\$ 1,468,940
Drug Fund	\$ 118,561
Water/Sewer Fund	\$ 7,400,460
Gas Fund	\$ 13,986,622

SECTION 3. That the governing body herein certifies that the condition of its sinking funds, if applicable, are compliant pursuant to its bond covenants, and recognizes that the municipality has bonded and other indebtedness as follows:

Bonded or Other Indebtedness	Debt Authorized and Unissued	Principal Outstanding at June 30, 2022	FY 2023 Principal Payment	FY 2023 Interest Payment
Bonds				
2014 GO Refunding & Imp		\$ 8,525,000	\$ 950,000	\$ 293,750
2016 GO Improvement		\$ 8,210,000	\$ 500,000	\$ 310,000
2021 GO Improvement		\$ 9,400,000	\$ 330,000	\$ 308,100
2011 W/S Rev Ref & Imp		\$ 5,925,000	\$ 450,000	\$ 183,498
2014 W/S Rev Ref & Imp		\$ 2,690,000	\$ 285,000	\$ 95,375
2015 W/S Rev Ref & Imp		\$ 5,700,000	\$ 1,200,000	\$ 219,038
2021 W/S Refunding		\$ 13,965,000	\$ 220,000	\$ 261,670
2021 W/S Improvement		\$ 13,400,000	\$ 325,000	\$ 461,400
2019 Gas Rev Improvement		\$ 4,940,000	\$ 210,000	\$ 180,838
Capital Lease				

SECTION 4. During the coming fiscal year the governing body has pending and planned capital projects with proposed funding as follows:

Pending Capital Projects	Pending Capital Projects - Total Expense	Pending Capital Financed by Estimated Revenues and/or Reserves	Pending Capital Financed by Debt Proceeds
REPAVING	2,150,000	2,150,000	
CITYWIDE SIDEWALKS PHASE 2	895,275	895,275	
LOCK 4 RD MULTI-USE PATH PH I	442,120	442,120	
KENNESAW GREENWAY PH I	275,000	275,000	
FIRE APPARATUS	1,300,000	1,300,000	
GOLF CARTS	200,000	200,000	
EOL COMPUTER REPLACEMENTS	164,050	164,050	
POLICE VEHICLES & ACCESSORIES	535,000	535,000	
VARIOUS INTERSECTIONS 2022	575,000	575,000	
ITS SIGNAL GRANT PHASE I	287,766	287,766	
VARIOUS INTERSECTIONS	150,000	150,000	
CLASS 8 DUMP TRUCK	155,000	155,000	
DRAINAGE UTIL LINES	250,000	250,000	
TOWN CREEK RESTORATION	238,000	238,000	
S WATER/E WINCHESTER CULVER	140,000	140,000	
AUTOMATED GARBAGE TRUCK	328,000	328,000	
REAR LOAD PUP TRUCK	156,000	156,000	
UTILITY LINES	1,000,000	1,000,000	

UTILITY LINES	1,500,000	1,500,000	
GEN MACHINERY & EQUIPMENT	125,000	125,000	

Proposed Future Capital Projects	Future Capital Projects - Total Expense	Future Capital Financed by Estimated Revenues and/or Reserves	Future Capital Financed by Debt Proceeds

- SECTION 5. No appropriation listed above may be exceeded without an amendment of the budget ordinance as required by the Municipal Budget Law of 1982 Tenn. Code Ann. Sec. 6-56-208. In addition, no appropriation may be made in excess of available funds except to provide for an actual emergency threatening the health, property or lives of the inhabitants of the municipality and declared by a two-thirds (2/3) vote of at least a quorum of the governing body in accord with Tenn. Code Ann. Sec. 6-56-205.
- SECTION 6. Money may be transferred from one appropriation to another in the same fund only by appropriate ordinance by the governing body, subject to such limitations and procedures as it may describe as allowed by Tenn. Code Ann. Sec. 6-56-209.
- SECTION 7. A detailed financial plan will be attached to this budget and become part of this budget ordinance. In addition, the published operating budget and budgetary comparisons shown by fund with beginning and ending fund balances and the number of full time equivalent employees required by Tenn. Code Ann. Sec. 6-56-206 will be attached.
- SECTION 8. This annual operating and capital budget ordinance and supporting documents shall be submitted to the Comptroller of the Treasury or the Comptroller's Designee for approval pursuant to Title 9, Chapter 21 of the Tennessee Code Annotated within fifteen (15) days of its adoption. If the Comptroller of the Treasury or the Comptroller's Designee determines that the budget does not comply with the Statutes, the Governing Body shall adjust its estimates or make additional tax levies sufficient to comply with the Statutes or as directed by the Comptroller of the Treasury or the Comptroller's Designee.

SECTION 9. If for any reason a budget ordinance is not adopted prior to the beginning of the next fiscal year, the appropriations in this budget ordinance shall become the appropriations for the next fiscal year excluding capital until the adoption of the new budget ordinance in accordance with Tenn. Code Ann. Sec. 6-56-210, provided sufficient revenues are being collected to support the continuing appropriations. Approval of the Director of the Office of State and Local Finance in the Comptroller of the Treasury for a continuation budget will be requested if any indebtedness is outstanding.

SECTION 10. All unencumbered balances of appropriations remaining at the end of the fiscal year shall lapse and revert to the respective fund balances.

SECTION 11. All ordinances or parts of ordinances in conflict with any portion of this ordinance are hereby repealed.

SECTION 12. This ordinance shall take effect on July 1, 2022, the public welfare requiring it.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

(City Seal)

General	
City Administration	1,207,664.00
Finance	664,899.00
City Recorder	498,598.00
Insurances	2,779,898.00
City Attorney	581,926.00
Information Technology	2,040,225.00
Human Resources	433,385.00
Engineering	4,818,417.00
Planning Commission	29,714.00
Planning	987,816.00
Government Buildings	515,267.00
Codes	1,608,560.00
Police Department	10,839,765.00
A.C.E.S. Program	110,000.00
Fire Department	10,778,244.00
Public Works Administration	471,399.00
Street Maintenance	1,961,015.00
Street Lighting and Signals	1,574,591.00
Vehicle Maintenance	674,364.00
Community Enhancement	185,470.00
Community Services	113,500.00
Civic Center	1,517,628.00
Golf Course	1,367,182.00
Parks	1,951,797.00
Economic Development	430,946.00
Economic Dev Utility	75,000.00
Tourism	25,000.00
Bond Expenses	2,693,450.00
Operating Transfers	-

SOR	5,000
Police Special	50,000

Stormwater Mainenance	\$ 759,743
Stormwater Administration	1,581,820

IDB	44,970
HEHFB	160,290

Environmental Serv Admin	139,306
Waste Collections	3,054,473

Drug Fund Investigations	90,000
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Water/Sewer	
Water Treatment and Pumping	2,024,155
Transmission & Distribution	3,066,560
Customer Accounting	796,632
Administration & General	1,749,480
Depreciation	3,800,000
Bond Expense	1,220,981
Paying Agent	1,600
Sewer Collection/Lines	1,462,252
Sewer System Rehabilitation	568,001
Sewer Treatment & Disposal	2,284,511
Sewer Admin & General	382,022
Sewer Pre-treatment Program	109,488
Gas	
Depreciation	1,100,000
Bond Expenses	181,288
Purchased Gas	16,800,000
Transmission & Distribution	3,462,872
Customer Accounting	753,645
Administration & General	1,158,684

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

May 10, 2022

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:
Ordinance adopting FY 2023 budget

SUMMARY:
Ordinance adopting FY 2023 budget. Ordinance will be handed out at meeting.

RECOMMENDATION:
Approval

ATTACHMENT:

☐ Resolution	☐ Correspondence	☐ Bid Tabulation
☐ Ordinance	☐ Contract	☐ Other

Approved	☒
Rejected	☐
Deferred	☐

Notes:

RESOLUTION NO. R2205-44

RESOLUTION APPROVING MURAL AT 118 WEST MAIN STREET

WHEREAS, Chapter 5, Article XV of the Gallatin Municipal Code regulates murals in Gallatin; and

WHEREAS, a request has been submitted to the Mayor's Office to review and approve a mural at 118 West Main St., and the Gallatin Arts Council has reviewed and approved the mural, (attached as Collective Exhibit 1), as required by Sec.5-302(c)(2) of the Municipal Code.

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, pursuant to Chapter 5, Article XV, Section 5-302 of the Gallatin Municipal Code, the proposed mural at 118 West Main St. is hereby approved.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this Resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Submittal Requirements for Murals

Internal Use Only

Gallatin Planning Department Approval Signature: _____

Date: _____

Gallatin Arts Council Approval Signature: _____

Date: _____

Gallatin City Council Approval Date: _____

Historic District Commission Approval Date (if applicable): _____



1. GENERAL INFORMATION (Complete all information)

Occupant: GALLATIN AREA CHAMBER OF COMMERCE Occupant Phone: 615 452 4000

Job Address: 112 W MAIN ST Tax Map & Parcel: _____

Zoning: _____ Historic District: Yes / No

Property Owner: CHAMBER / KIM BAKER, CEO

Property Owner Phone: 615 516 0232 (KIM CELL)

Property Owner Address: _____

Artist: Blaine Harvey

Artist Phone: 630-470-4914

2. ☐

3. MURAL DETAILS

Façade/Location of Mural on Building: Gallatin Chamber of Commerce alley-wall

Wall Width 10' Wall Height 10' = 100 sq. ft.

What kind of medium(s) will be used on the Mural (paint type, sealer, other materials):

Sherwin William's Outdoor Paint + SEALANT

I hereby acknowledge that the information given herein is correct and true and I agree to comply with all laws and regulations governing murals in the City of Gallatin.

Applicant's Signature: Kimberly Baker + Liam Alexander Date: 4/27/2022

Property Owner's Signature: Kimberly Baker Property Owner's Name (Print): KIMBERLY BAKER

My name is Liam Alexander, and I am a 15-year-old freshman at Pope John Paul II Preparatory School. I am asking for approval of a mural in the alley of the Chamber of Commerce as part of my Eagle Scout project. The mural will complete the final stage of my project. I have worked over the last several months to transform the alley between the Chamber and Secret Garden. I am dedicating my project to the late Mr. Jim Hawkins. He inspired good in people. He often worked with my Scout Troop and taught us what it meant to be good citizens. I want my project to also inspire those same feelings in people. I want to make it easy for the citizens of Gallatin to do good. I want any visitors that pass through to know why Gallatin was named the nicest place on Earth.

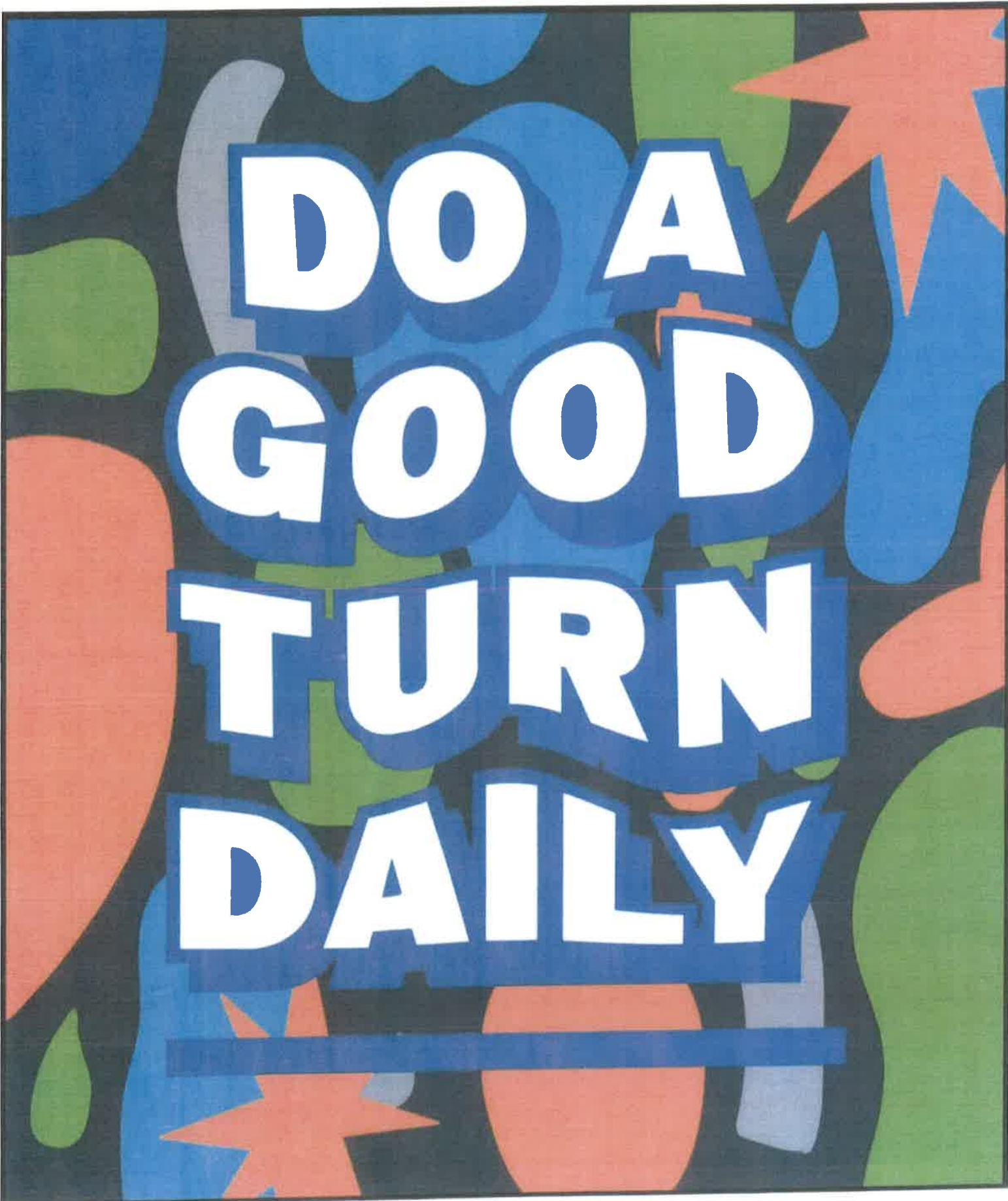
I have added a blessing box for non-perishable food items, a flag drop box for American flags that need retiring, a board to spread notes of kindness, a free little library donated by Leadership Gallatin, a new table with seating, landscaping, and lights. The theme of the mural is "Do a Good Turn Daily." Not only is that the Scout slogan but also a reminder for all who pass through the alley. A simple act of kindness can not only change our city for the better but our world.

I have personally fundraised all the money to pay for this project. I am working with mural artist Blaine Harvey and will pay him to paint the mural. His design pulls in the theme of the project and alley with the official city color palette. I do believe this will be a welcome addition to our already beautiful city.





**DO A
GOOD
TURN
DAILY**

An abstract graphic featuring the text "DO A GOOD TURN DAILY" in a bold, white, sans-serif font with a thick blue outline. The text is arranged in four lines: "DO A", "GOOD", "TURN", and "DAILY". The background is a dark blue field filled with various colorful, organic shapes in shades of blue, green, orange, and grey. A thick blue horizontal bar is positioned below the word "DAILY".

**DO A
GOOD
TURN
DAILY**



Proposed Mural for 118 West Main Street

Dimensions

- The proposed mural will be around 100 square feet.
- Approximately 10 x 10 feet.

Mural Maintenance Plan

- Due to the quality of materials used during initial install, there is minimal expected upkeep
- The Gallatin Area Chamber of Commerce will monitor the mural and condition
- Any and all needed maintenance will be handled by the Gallatin Area Chamber of Commerce
- Artist, Blaine Harvey, will be hired for repairs if needed



April 27, 2022

To Whom It May Concern:

We are writing this letter in support of the mural proposed for the wall of our building at 118 West Main Street. As a staple in the downtown area and community champions, our organization supports this effort.

Murals are important as they bring art into public space – space that is often experienced only in passing, from one point to another. By adding art to a space like the wall of 118 West Main Street, it not only enhances the existing property but provides an opportunity for additional visitors to our Historic Downtown area. Our hope is that word will travel to locals about a design creating a stronger sense of place and to outsiders that there is destination-worthy art just off Main Street in Gallatin, Tennessee. Upon arrival, viewers will take a moment to capture themselves with the iconic art and then share it with others on social media platforms, increasing awareness of the mural itself and Gallatin as a whole.

Additionally, we believe supporting the efforts of future business and community leaders like Liam Alexander is worth doing. Liam bring fresh ideas, a heart for community, and a desire to let the legacy of the late Jim Hawkins live on with his wonderful Eagle Scout Project and alley way enhancement, "Hawkins Alley".

As a host of many newcomers ourselves, we welcome the visually appealing addition to our "neighborhood". As a community champion, we welcome the visitors to our city and look forward to leading them to their next destination in Gallatin, Tennessee.

Thank you for your consideration and willingness to review a meaningful community art addition.

Best,

Kim Baker
Chief Executive Officer
Gallatin Area Chamber of Commerce

Justin Hays
Board Chairman
Gallatin Area Chamber of Commerce

118 West Main Street • Gallatin, Tennessee 37066 • 615.452.4000 • info@gallatintn.org

www.gallatintn.org

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

May 10, 2022

DEPARTMENT: Mayor's Office

AGENDA #

SUBJECT:

Resolution No. R2205-44 Resolution Approving Mural at 118 West Main Street

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☒
☐

**Resolution
Ordinance**

☐
☐

**Correspondence
Contract**

☐
☒

**Bid Tabulation
Other**

**Approved
Rejected
Deferred**

☒
☐
☐

Notes: